

Request for Quotation (RFQ)

Open Tender for Comprehensive Maintenance Contract (CMC) for Server Systems (EPMS & PMS) at SAIL Corporate Office New Delhi

NIT No. SAIL/C&IT/RFQ/CMC/SERVERS/2015-18 dated 11/03/2015



स्टील अथॉरिटी ऑफ इण्डिया लिमिटेड
STEEL AUTHORITY OF INDIA LIMITED

Computer & Information Technology
19th Floor, Scope Minar, Laxmi Nagar, Delhi-110092

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Overview

- ✓ Steel Authority of India Ltd. (SAIL) is a Government of India Enterprise having 'MAHARATNA' company status. It is the largest producer of Steel in India having Steel Plants and its own captive mines across India. It produces various Iron and Steel products like Pig Iron, Flat & Long Steel Products and Special Steels. SAIL is accredited with various quality certificate viz. ISO-9001-2008, IS-14001, OHSAS-18001, SA-8000 etc. During the financial year 2013-14, SAIL produced around 14.0 Million Tons of Hot Metal with an annual turnover of around Rs. 49,350 Crore.
- ✓ SAIL has online Executive Performance Management System (EPMS) for all its integrated steel plants, subsidiaries, marketing units etc. SAIL also has online Project Monitoring System (PMS) for entering data for new AMR Projects Expansion data from all Plants/units. Both the server systems are installed at SAIL Corporate Office, New Delhi and the clients are spread over geographically at different locations within the Plants & outside Plant and at various cities & towns in India. The clients have access to these systems (EPMS & PMS) through web based system. For both the server systems, presently SAILNET is being used as network infrastructure, which uses leased line, ISDN, VSAT & MPLS-VPN modes of connectivity.
- ✓ Presently, SAIL intends to engage the services of an experienced service provider, which is technically & financially capable to take over and continue Comprehensive Maintenance Contract (CMC) for the abovementioned server systems (EPMS & PMS) on 24x7x365 basis. **SAIL hereby invites offers from the eligible tenderers (Annexure-I)** in this regard.
- ✓ EPMS system predominantly consists of HP servers and SAN Storages (with load balancer from Radware and Server Aggregation Switch from CISCO) whereas PMS system consists of IBM servers. The detailed list of equipment for individual server systems along with the Scope of Work of CMC is given in **Annexure-III**
- ✓ The Comprehensive Maintenance Contract (CMC) shall consist of comprehensive preventive as well as breakdown maintenance by the service provider along with software support. This will include carrying out all necessary repairs, provisions for supplies/fittings and replacement of defective parts/components viz. Mother board/ RAM/ Hard disk/ Power modules/ LCD Panel etc. The service provider shall repair or replace all parts of Hardware with existing make & specification same or better, free of cost during CMC period. Replaced parts/components shall become the property of the service provider.
- ✓ The contract period will be for 3 (three) years to be reckoned from the date of commencement of contract post signing of agreement between SAIL and the service provider. However, individual server systems (EPMS & PMS) will be handed over to the service provider for CMC on different dates as follows:

Server System	Tentative date of handing over the Server System to the service provider	Remarks on Service Duration
Executive Performance management System (EPMS)	10 th May 2015	36 months (10 th May 2015 to 9 th May 2018)
Project Monitoring System (PMS)	5 th Jan 2016	28 months approx. (5 th Jan 2016 to 9 th May 2018)

*** CMC of the EPMS and PMS would commence on different dates but would co-terminate on same date i.e. 9th May'2018.** SAIL, however, reserves the right to extend the contract for a further period of one or more quarters (or days on proportionate payment basis) to ensure uninterrupted care & services to both the systems pending the finalization of fresh contract.

- ✓ Tenderers are requested to read carefully the instructions contained in the RFQ and submit their offer in line with the requirement indicated. The offer is required to be submitted as follows:

Tender to be submitted at / Tender sent by Post/ Courier to be addressed to	Office of General Manager (C&IT), Steel Authority of India Limited, Computer & Information Technology Department (C&IT), 19 th Floor, Core 2, Scope Minar, Laxmi Nagar, New Delhi-110 092 (India). <i>(Envelope containing quotation should be clearly superscribed with the NIT reference no, due date of submission, due date of opening)</i>
Due date of submission of Tender (EMD, Techno Commercial Bid and Price Bid)	On or before 07.04.2015 at 11:30 Hrs (IST)
Due date for opening of Tender (EMD & Techno Commercial Bid)	On or before 07.04.2015 at 12:00 Hrs (IST)
Validity of the Offer for order placement	Techno-commercial Bid shall remain valid for minimum 60 days from the date of opening of Techno-commercial Bid. <i>Price Bid shall remain valid for 30 days from the date of price-discovery either through online Reverse Auction (RA) or by offline opening of sealed Price-Bid at the option of SAIL.</i>

- ◆ Summary of other relevant details of the RFQ are as under:

1.1	Service required	Comprehensive Maintenance of EPMS and PMS server systems as per detailed Scope of Work (SoW)
1.2	Contract Period	3 (three) years from the date of commencement of contract. The contract will commence with handing over of any Server System (EPMS or PMS) by SAIL to the service provider.
1.3	Scope of Work,Infrastructure and Workflow, Network Architecture	As detailed in RFQ
1.4	Price-discovery	Will be done either through online Reverse Auction OR by offline opening of sealed Price-Bid already submitted while submitting Techno-Commercial Bid. <i>The price discovered and finalized (through RA or otherwise) shall remain FIRM till successful completion of contract.</i>
1.5	Payment Terms	As detailed in RFQ

1.6	Penalty Provisions	As detailed in RFQ, penalty provisions exist for: a. Downtime b. Delay in replacing faulty spare parts c. Not performing monthly PM as schedule Total quarterly penalty for a+b+c shall not exceed 10% of total quarterly CMC charges payment
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Eligibility Criteria and Supporting Documents

S.No.	Eligibility Criteria	Documents to be submitted
1.	Tenderer should be registered under Indian Companies Act	Copy of Certificate of Incorporation/Registration.
2.	Tenderers should be ISO certified (9000 or higher certification)	Copy of valid Certificate(s)
3.	Tenderer should have a AMC/CMC experience of maintaining RISC/EPIC based servers in Unix environment under Data center Setup* in any of the 5 years (the years being 2009-2010 to 2013-14) of PSUs/ Central Government/ State Government/ Public Sector Banks/Corporate Bodies (incorporated under Indian companies Act) *Data center setup will mean a setup equivalent to a setup as envisaged in Scope of Work indicated at Annexure III	Copy of orders / agreements Two separate and successfully completed work orders of RISC/EPIC based servers in Unix environment under Data center Setup* of minimum annual value Rs.12.5Lac each in any of the previous 5 years.(the years being 2009-2010 to 2013-14).Running / on-going work orders are also acceptable provided the same is in operation for more than one year . OR One completed order of annual value Rs.20 Lac or more of RISC/EPIC based servers in Unix environment under Data center Setup* . Running / on-going work orders are also acceptable provided the same is in operation for more than one year. In proof of above the party should produce a letter of satisfactory performance from the competent authority of the organization where they have entered into an AMC contract.
4.	Tenderers should have in-house service center or Technical Support office at Delhi/NCR (The technical support facility can be inspected by SAIL C&IT Team at any time during the evaluation process / before awarding the contract/even after award of work)	Self-declaration on Notarized non-judicial stamp papers.
5.	A) Tenderer should have a pool of at least 100+ qualified maintenance engineers (including 10+ server level qualified maintenance engineers) on their rolls. B) Tenderer be registered with the PF authorities	A) Self-declaration on Notarized non-judicial stamp papers with their qualification, experience & duration of service B) EPF Code no. with copy of Registration certificate
6.	Letter from respective OEMs for back-to-back support from HP (for item 2-5, 7-15 of Annexure-III C i.e. HP items), from IBM (for Items 17-22 of Annexure- III C i.e. IBM items), from CISCO (for Item 1 of Annexure- III C) & from Radware (for Item 6 of Annexure- III C) needs to be provided. The successful vendor shall provide back-to-back agreement letter covering entire contract duration from HP, IBM, CISCO & Radware after award of contract.	Letter from OEMs for back-to-back support (to be furnished along with Techno-commercial Bid)
7.	Tenderer should not have been black-listed by any PSU / government organization.	Self-declaration on notarized non-judicial stamp papers.
8.	Tenderers should have annual turnover of not less than Rs.6 Cr during each of the preceding 3 financial years (2011-12, 2012-13, 2013-14)	Duly audited Profit / Loss statements, Balance Sheets along with the auditor's report.

Note:

- All dates to be reckoned with Last date of submission of bids (including extension(s) thereof, if any) for evaluation purpose. All documents / certificates submitted should be valid as on this date.
- Failure to furnish all information required as per the Bid Documents and any information being found incorrect or false or misleading shall be liable to rejection of the bid at any time and cancellation of award, even if order has been placed.

INSTRUCTIONS TO TENDERERS

1. DOWNLOADING OF TENDER DOCUMENT

The prospective tenderers can download the tender document from SAIL tender site (<https://www.sailtenders.co.in>) or Central Govt. Public procurement Portal (www.eprocure.gov.in). The Tender Document published on the website is the authorized version of SAIL. It should be ensured that anything downloaded from the SAIL website is virus-checked. SAIL accepts no liability for any loss or damage caused by downloading of documents from the site. Offers submitted with any (intentional/unintentional) changes or deviation/difference in the tender documents are liable to be rejected. In case of any dispute, the tender documents as displayed on the website shall be treated as valid document.

Any changes in tender will be notified in SAIL Tender website(<https://www.sailtenders.co.in>) or Central Govt. Public procurement Portal (www.eprocure.gov.in). The amendment thus put on the website, will be binding on all tenderers.

TENDERERS ARE THEREFORE ADVISED TO VISIT THE WEBSITE AT REGULAR INTERVALS.

Note: The Tenderer is expected to examine all instructions, proforma, forms, terms and specifications in the RFQ. Failure to furnish all information required under the RFQ or submission of a bid not substantially responsive to the RFQ in every respect will be at the Tenderer's risk and may result in the rejection of the bid.

2. PREPARATION AND SUBMISSION OF BIDS

A) The tenderer shall submit the bid in a sealed envelope in the tender box kept at the office of the GM (C&IT), Steel Authority of India Limited, Computer & Information Technology Department (C&IT), 19th Floor, Core 2, Scope Minar, Laxmi Nagar, Delhi -110092 during office hours between 09:00 AM to 05:30 PM (excluding holidays) during the period starting from 13/03/2015 to last date and time of bid submission.

Last Date & Time of Bid submission:

Bids will be received upto 11:30 HRS on 07/04/2015.

B) Tenders submitted after the date and time of submission stipulated above will not be accepted.

C) Tenders may also be delivered by hand/courier so as to reach the address before the last date & time of bid submission stipulated above. SAIL takes no responsibility for bids received late. Telex, Facsimile & e-mailing bids will not be considered.

D) Tenders should be submitted in **three part Bids-**

Part I) Earnest Money Deposit (EMD):

EMD shall be submitted in the form of Bank Demand Draft of Rs.1,00,000/- (One Lac only) drawn in favour of Steel Authority of India Limited, New Delhi. No interest shall be paid on the EMD. **Submission of EMD shall be a precondition for opening/evaluation of Techno – Commercial Bid (Part – II).**

EMD may be accepted in the form of demand draft, pay order, Banker's Cheque or Bank



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Guarantee (BG) from any Specified Scheduled Bank except Co-operative and Gramin Bank. BG will be kept valid at least upto 60 days from the date of tender opening. Earnest Money can also be in the form of TT remittance / online transfer - NEFT, RTGS, SWIFT. The proof of such e-remittance needs to be submitted with the offer in the envelope titled Earnest Money Deposit. The tenderers should submit EMD in a separate envelope and not to enclose the same with any part of the quotation. No request for adjustment of earlier dues in place of EMD will be entertained.

*In case of online remittance of EMD the same may be remitted to: (9 digit code no. of the bank & branch (MICR code): 110002050, IFSC Code- SBIN0006564, Account Number- 10113030159). In this respect tenderers who send online remittance must ensure that **EMD is credited in SAIL's Bank A/C**. Confirmation **will be required before** the opening of the bid. Failure on the part of tenderer to ensure the receipt of EMD by SAIL will result in summarily rejecting the bid submitted by tenderer.*

The EMD provided by the tenderers will be returned to the unsuccessful tenderers within thirty days from issue of LOA. In the event the offer of a tenderer is rejected during the course of Techno-Commercial Scrutiny and Evaluation, the EMD shall be returned to such tenderer within seven days from the date of rejection of its offer.

The EMD will be refunded to the successful tenderer after placement of order, signing of CMC agreement, submission of Performance Guarantee Bond & back-to-back agreement (from **HP, CISCO, Radware** for EPMS sever system and with **IBM** for PMS server system as per the requirement of the server systems by the tenderer). **In case of failure on the part of the successful tenderer to submit the above documents, its EMD shall be forfeited.**

Small Scale Units / Ancillary Units and Public Sector Units/ Govt. Undertakings and Co-operative Societies, etc., are exempted from submission of EMD. As per Government Policy for SSI Units, the exemption from submission of EMD is to be granted only for the items for which it is registered. In order to avail the exemption, the tenderer shall be required to substantiate his claim through Documentary evidence regarding their status along with Part I document.

Part II) Techno-Commercial Bid:

Technical Bid - As part of the technical bid, the tenderers are required to submit acceptance of Scope of Work along with the technical details/experience to carry out the job.

In addition a brief outline on methodology of support to meet the tender requirement, service escalation procedure etc needs to be submitted.

Commercial Bid – As part of the commercial bid, the tenderers are required to accept the technocommercial terms and conditions of the RFQ. They are also required to submit all requisite forms/ proforma and supporting documents as per the RFQ. However, un-priced price bid (Form VI), duly stamped & signed should be submitted along with techno commercial offer.

The Tenderer shall also submit the signed and scanned copy of the General Rules and Regulations governing conduct of On-line Reverse Auctions (Annexure-VII of the RFQ) as a token of acceptance of the same.

There shall be no indication of price in the techno-commercial bid. If prices are indicated there, such offers are liable to be rejected.

Statement of Deviations

The Purchaser (SAIL) solicits bids in conformity with the terms and conditions, without any deviations. *However, if any Tenderer is unable to accept any particular term or proposes any deviation therefrom, the Tenderer shall enclose along with his offer, a Statement of Deviations as per Form-IV given in this RFQ clearly spelling out the deviations proposed.*



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The Tenderer shall submit Bid confirming acceptance to all terms and conditions of the RFQ, except for the deviations specifically proposed as Form-IV (Statement of Deviation) in the Bid. **SAIL, however, reserves its right to take a final call on the acceptance or otherwise of the deviations indicated/proposed by the tenderer while evaluating the techno-commercial bids.**

Part III) Price Bid:

Price-bid (CMC Charges) will be submitted by the Tenderers as per the specified Price-Bid Format, given in the RFQ. **(Form VI)**

SAIL reserves the right to conclude price-discovery either through online Reverse Auction (RA) or by opening offline sealed price-bids already submitted by the tenderers. Post Reverse Auction (RA), the successful tenderer – on request from SAIL or its service provider- will again give the break-up of its price as per the specified Price-Bid Format. (FormVI)

SUBMISSION OF BIDS

All the three parts should be sealed in separate covers super-scribing the tender reference. The three sealed covers should then be sealed in a single envelope, super-scribing it as given below: -

[NIT No., Dated, Due date of Submission / Time of Opening]

[Tender: Comprehensive Maintenance Contract (CMC) for Server Systems (EPMS & PMS) at SAIL Corporate Office, New Delhi]

[Address: Office of the GM (C&IT), Steel Authority of India Limited, Computer & Information Technology Department (C&IT), 19th Floor, Core 2, Scope Minar, LaxmiNagar, Delhi -110092].

E) Tender Opening:

Only the EMD (Part I) and the Techno-Commercial Bids (Part II) of the bid submitted within due date and time will be opened in the presence of tenderers who choose to be present. Part - III of the bids containing Price Bid **(of Techno-commercial acceptable offers)** will be opened on a date to be communicated later.

G) Key Contacts: For any clarification regarding the Tender Documents, the following officers of SAIL may be contacted:

Name & Designation	Address	Phone no.
Shri Naveen Jain AGM (C&IT) SAIL n.jain@sail.com	19 th Floor, Core 2, SCOPE Minar, Laxmi Nagar Delhi -110092	011-22403429
Ms. Kavita Pathak Senior Manager Kavita.pathak@sail.com	19 th Floor, Core 2, SCOPE Minar, Laxmi Nagar Delhi -110092	011-22403426

3. DEFINITIONS:

- The term "the Contract" shall mean the Request for Quote and acceptance of tender with the general terms and conditions that may be finally agreed upon.
- The term "Tenderer", "Contractor" or "Seller" or "Supplier" or "Party" shall mean the firm or company on whom the CMC is to be placed by the purchaser and shall be deemed to include its successors (approved by the purchaser), representatives, heirs, executors and administrators unless otherwise excluded by the contract.
- The term "Company" shall mean the Steel Authority of India Ltd.



iv) The term "Purchaser" shall mean the Steel Authority of India Limited and / or its units / SAIL Corporate Office.

4. The purchaser reserves the right to accept / reject the tender in full or in part without assigning any reason.

5. Tenders not confirming to the tender instructions and terms and conditions are liable to be rejected.

6. Tenderers shall furnish clause-by-clause compliance on all clauses of Bid Document including Scope of Work. Use of the word "Noted" against any of the Bid conditions shall mean tenderer agrees to comply with that/those conditions of the Bid

7. The offers shall be made available in hard copies as specified in the RFQ and should be stamped & signed by the authorized signatory of the firm on all pages of the hard copy and must have page numbers on each page properly.

8. It may be noted that in no form the price should be indicated in techno-commercial part of the offer. However, un-priced price bid (Form VI), duly stamped & signed should be submitted along with techno commercial offer.

9. Bids submitted after due date & time shall not be accepted.

10. Tenderers must enclose Sales Tax registration certificate & ST registration no., VAT Registration certificate, PAN along with the techno-commercial offer.

11. If desired, Tenderer may visit the site to get acquainted with the work and the operating environment prior to submission of bid

12. Consortium bid is not acceptable.

13. In all cases, the tenderer has to ensure their own technical manpower for resolution of any issues, which may be reported from time to time. Back-to-back agreement with OEM is a pre-requisite for providing support for Items (1-15 & 17-22) of Annexure III C.

Currently, Windows Server 2003 & other windows product, HP Unix, Oracle RDBMS, Oracle application server & other Oracle products, Primavera® P6™ Project Management mainly are installed in the server systems.

14. Declaration by Tenderer

Tenderer to declare whether the proprietor / partner / Director of the firm has any relation with any employee working in the plants / units concerned or Director of SAIL including its subsidiaries and if so, give the details and the relationship.

15. Evaluation criteria:

(a) Bid should be submitted in sealed envelope .

(b) The Techno- Commercial offer of the tenderer will be opened only for such tenderers who have submitted the EMD (Part-I) for the requisite amount.

(c) Offers of following kinds may be rejected:

i) Offers which do not conform to validity as per RFQ

ii) Offers without duly filled in **Forms/Proforma as per RFQ** along with supporting



documents wherever required

- iii) Offers where prices are not firm during the entire duration of the contract and/or are conditional offers
- iv) Offers which do not conform to RFQ terms and conditions.

(d) Technical/ Commercial Evaluation criteria:

Incomplete and non-confirming bids will be rejected outright.

- i) Bid should be complete and covering the entire scope of work.
- ii) Bid should conform to all the technical and commercial condition indicated in the bid documents.

(e) Price Evaluation Criteria

(b) Evaluation of offers:

i) Evaluation of bids: -

Bids shall be evaluated on the Total Price quoted as indicated in **Price Bid Format in Form -VI** of this RFQ. Among the techno-commercially acceptable offers, the tenderer with the lowest total Price quoted shall be awarded the contract. **L-1 tenderer** will be determined on the basis of the lowest cost for entire contract duration (EPMS & PMS for their respective service duration as indicated in the RFQ).

ii) While evaluating the bids: If there is a discrepancy between words and figures the amount in words will prevail for calculation of L1.

iii) The lowest tenderer may be required to justify the rates quoted by him and in case of any refusal for providing justification, the tenderer will be asked to furnish additional performance guarantee bond (by way of bank draft / bank guarantee from Scheduled banks) equal to the difference between the quoted price and the purchaser's estimate. The validity of bank guarantee, thus submitted, will be same as that of performance security bank guarantee as per clause 10 of Annexure - IV. EMD of the tenderer who refuses to comply with this clause would be forfeited. However, if the lowest tenderer is able to justify his rates and the same is found workable by the purchaser, then such performance guarantee bond may be waived.

Annexure –III A

SCOPE OF WORK

- 1.0) The supplier shall maintain the equipment specified in Annexure-III C (Items 1-16- **EPMS System**) for the Period 10.05.2015 to 09.05.2018 and (Items 17-22- **PMS System**) for the Period 05.01.2016 to 09.05.2018 of this CMC. Any subsequent additions/deletions shall also be deemed to be covered by and subject to terms & conditions of this CMC.
- 2.0) In the event 'SAIL' requires modifications, replacement, additions or alterations to any of the computer systems, Supplier may undertake the same at additional charges to be mutually agreed upon.
- 3.0) Services shall consist of Comprehensive Preventive & Breakdown Maintenance along with software support. This will include carrying out all necessary repairs, provisions for supplies/fittings and replacement of defective parts viz. Mother board/ RAM/ Hard disk/ Power modules/ LCD Panel etc. Replaced parts shall become the property of the supplier.
- 4.0) Maintenance contract shall include supply and replacement of all defective parts/components by supplier free of cost. In case of replacement of parts, the part removed will become property of the supplier
- 5.0) The supplier shall repair or replace all parts of Hardware with existing make & specification same or better, free of cost during CMC period. If make & specification of replaced parts are different, the genuineness of the replaced parts will be shown by the Party to Maintenance Administrator of SAIL before replacement.
- 6.0) The Tenderer shall provide
 - 6.1) **For EPMS System:-**

Comprehensive maintenance services for the complete Hardware & Software of the EPMS system **for the contract period** on 24x7X365 basis round the year. The maintenance shall be comprehensive in nature including all items/spares required for smooth and trouble free operation of the existing system. The maintenance of the system shall include the following: -

 - a. Hardware Maintenance of the following :-
 - i. Blade Servers (Web & Application Servers, Active Directory Servers)
 - ii. Database Servers (EPIC based)
 - iii. Radware Load Balancer
 - iv. Switches (Server Aggregation & KVM Switches)
 - v. SAN Switch & Storage system
 - vi. Auto Loader
 - vii. Backup Server
 - viii. Miscellaneous Server – (1U)
 - ix. Power supply arrangement
 - x. Racks and their associated equipment, including cables in the racks using Cable Managers
 - xi. Blade Enclosure
 - xii. Common Console device
 - xiii. FO/UTP cables, patch panel, patch chords, Power cables, PVC Pipe/channel etc. to connect the servers in the network from UPS point in the server room
 - xiv. Upgradation of Firmwares (if required).

Please refer to the attached list at Annexure –III C (Items 1-16) for details.

- b. Software Maintenance (Configuration & re-installation if required) of
- i. Operating System of all Servers (*including patch management*) and devices
 - ii. Utility Tools
 - iii. Software development tools
 - iv. OS level Clustering of Oracle Database Servers (*Two node HP cluster*)
 - v. Crystal Reports, .Net Framework, Oracle Data Access Components, Web Services, Active Directory services and Internet Information Services(IIS), Application pools, Virtual Directory etc.
 - vi. Load balancing between web servers and among application servers.
 - vii. Auto Loader and Backup Software & Management System
 - viii. Storage Management system (including creation of LUNS, zoning, masking, if required)
 - ix. Managed Layer-3 based rack mountable Aggregation Switch
 - x. IP based Digital KVM Switch
 - xi. Common Console device
 - xii. Oracle Database Management System(including free patch management, if required)
 - xiii. Upgradation of OS or Database (if required).

The media for Operating system, RDBMS, Utility tools, software development tools and associated software shall be provided by SAIL.

- c. Network support services for all the aboveresource as per *the attached list at Annexure –III C(Items 1-16) for details.*
- d. Hardware & Software based remote administration from a standard web browser with event logging, detailed server status, Logs, Alert Forwarding, virtual control, remote graphical console, Remote power control/shut down, virtual text and graphical control.
- e. Maintenance including re-installation & configuration (*if required*) of Oracle 10g Database and RMAN backup & recovery system.
- f. Maintenance (including re-installation, configuration & creation of farms, if required) of Radware Devices (*Secondary Radware to take over on failover of the primary one*).
- g. Recovery (*in case of system crash*) of all data and software on EPMS system from the Backup system.
- h. Deployment of in-house developed application software for EPMS on servers & storage systems.
- i. Assigning of IP addresses to devices along with configuration of Virtual IP addresses wherever applicable.
- j. Maintenance shall include re-installation & configuration of all software & systems as per need.
- k. The hardware maintenance shall include free repair/replacement of all defective hardware, cables & accessories etc.

Database Activities will include

- Monitoring of Oracle System, Alert logs etc.
- Creation of free space in all Tablespace



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- Managing the database's storage structures
- Checking mount points/space utilization
- Purging Database invalid schema objects and logs
- Verification of RMAN backups
- Monitoring and tuning performance

6.2) For PMS System:-

Comprehensive maintenance services for the complete Hardware & Software **of the PMS system for the contract period** on 24x7 X365 basis round the year. The maintenance shall be comprehensive in nature including all items/spares required for smooth and trouble free operation of the existing system.

a. Hardware Maintenance of the following :-

- i. Web server
- ii. Database server
- iii. Backup Server
- iv. Contract manager server
- v. Tape drive
- vi. USB Hard Disk
- vii. KVM Switch
- viii. Common Console device
- ix. Power supply arrangement
- x. Racks and their associated equipment, including cables in the racks using Cable Managers
- xi. FO/UTP cables, patch panel, patch chords, Power cables, PVC Pipe/channel etc. to connect the servers in the network from UPS point in the server room
- xii. Upgradation of Firmwares (if required).

Please refer to the attached list at Annexure –III C (Items 17-22) for details.

b. Software Maintenance (Configuration & re-installation if required) of the following

- i. Operating System of all Servers (Window 2003 Server or Higher) including patch management, review of event logs etc.
- ii. Utility & Software Tools
- iii. Backup Software & Management System
- iv. Recovery (in case of system crash) of data on server from the database Backup.
- v. Installation & configuration of Primavera® P6™ Project Management & Oracle Primavera P6 web services & application server.
- vi. Database Management System: Oracle 10g(including free patch management, if required)&
- vii. Upgradation of OS or database (if required).

The media for Operating system, RDBM utility tools, software development tools and associated software shall be provided by SAIL.

c. Network support

Network support services for all the resources as per the *attached list at Annexure –III C (Items 17-22).*

d. Database Activities will include

- i. Monitoring of Oracle System, Alert logs etc.
- ii. Creation of free space in all Tablespaces
- iii. Managing the database's storage structures
- iv. Checking space utilization



- v. Purging Database invalid schema objects and logs
- vi. Monitoring and tuning performance

e. Submission of comprehensive monthly report regarding upkeep of the Servers & Database by the vendor.

In all cases, the tenderer has to ensure their own technical manpower for resolution of any issues, which may be reported from time to time. **Back-to-back agreement with OEM is a pre-requisite for providing support for Items(1-15 &17-22) of Annexure III C.**

During the Monthly schedule of Preventive Maintenance along with the internal dust cleaning the vendor shall undertake the following tasks:-

- i) Clean case, blow out dust, ensure proper power connectivity
- ii) Ensure cleanliness and orderliness of wiring closets and technical environments
- iii) Fix any faulty hardware

Besides comprehensive preventive maintenance, the services shall also consist of breakdown maintenance and include diagnosis & rectification of the faults of the hardware and repair/replacement of the faulty part/equipment/hardware. The diagnosis shall mainly be as under:-

- a) Diagnose & rectify the faults of the hardware/operating systems.
- b) Repair/replace the faulty equipment/hardware.
- c) Re-configuration, if required and putting it back in the network.

All the software related activities as mentioned in the scope of work will be looked after with the software group of C&IT .

- 7.0) The supplier shall maintain proper organization in terms of human resources, tools and test equipment, gauges & gadgets to run diagnostics.
- 8.0) The successful tenderer shall depute well trained/qualified engineers, who would visit SAIL's premises once in a month to attend to preventive maintenance & health check-up etc. The cost of engineer may be included in the cost of maintenance of equipment.
- 9.0) Well trained/qualified engineers shall be provided for attending the complaint. **No hit & trial method** will be allowed while attending the server complaint.
- 10.0) The comprehensive maintenance shall be carried out primarily at the premises of SAIL during office hours. In case, the company feels that the equipment cannot be repaired at site, it will carry and deliver the equipment at its own cost and risk to get it repaired promptly.
- 11.0) CARE OF THE EQUIPMENT
 - i) The customer shall give the supplier full & free access to the equipment to enable the supplier to provide maintenance services & make available to the supplier, the services of customer's staff, who are familiar with the programs run and provide suitable working space and facilities.
 - ii) Supplier shall not be liable for any damages/loss which may occur as a result of transfer of the system by the customer from present location to another location / premises without assistance by Supplier's Supervision Engineers in this respect.
 - iii) Scope of contract does not include failure of product/parts due to mishandling, breakage and damages by the customer.



- iv) Supplier shall carry out routine voltage checking / electrical fault etc. of the customer premises periodically, and intimate in writing of any fault found. This is essential as **NO** claim for repair on chargeable basis on account of failure / damage attributable to electrical faults will be entertained, until & unless it has been established that these repairs have been necessitated due to erratic power supply.

12.0) MAINTENANCE RECORDS & CALL COORDINATION

- i) Supplier shall maintain history card for each unit of the equipment indicating preventive maintenance activities, types of breakdowns, types of repairs carried out and spare parts used. These history cards shall be handed over to customer as and when the contract is terminated.
- ii) The supplier shall supply the customer with call sheets / Log Register on regular basis in which details of breakdown, time at which the breakdown took place, calls made and time taken to attend the call, etc. will be indicated. These call sheets/Log Register shall form the basic document on the basis of which uptime will be calculated.
- iii) All Complaint calls should invariably be recorded in Call Sheets/Log Register kept at Customer's site.

13.0) MOVEMENT OF TERMINALS AND OTHER PERIPHERALS EQUIPMENTS

The Supplier shall relocate or move Servers or such other equipment as mutually agreed upon.

14.0) UNINTERRUPTED SERVICES

In the event of new contract not being finalized by the customer before the expiry of the current contract, the contractor shall at the end of CMC period, continue to carry out the maintenance services for one or more quarter or as communicated by 'SAIL' on the same terms & conditions.

Annexure III B**INFRASTRUCTURE & WORK-FLOW OF THE SEVER SYSTEMS (EPMS & PMS)****A.EPMS SERVER SYSTEM****Infrastructure**

The existing **EPMS** Server system consist of Server Aggregation switch, Web Servers, Application Servers, Database Servers, Active Directory Server, Storage Area Network (SAN) switches and External storage boxes. The Aggregation switch is connected to the existing Core switch of SAIL Offices at Scope Minar through 1 Gbps link. All these Servers are connected to the Aggregation switch on 1 Gbps link. The SAN switches are connected with the Database servers through fibre channel connectivity. The external storage boxes are connected to the SAN switches through fibre channel connectivity. The connectivity diagram for Servers & Storage System has been shown in Annexure-III B.

The EPMS Server system is in Data Centre Setup located at 19th Floor, Scope Minar Office, New Delhi.

The application software has been developed in-house by C&IT group of SAIL Corporate Office. The software is based on three tier architecture, using Oracle 10G as Relational Database Management System (RDBMS) and Dot Net with C Sharp as front end development tools. The software is being used for online assessment by self, reporting officer & reviewing officer and online entry & monitoring of Task, Target and Key Performance Areas (KPA's) for the executives of SAIL, working in different steel plants & subsidiaries of SAIL. The total number of executives to be covered under above mentioned Performance management system (EPMS) is approximately, 16000.

The system has been designed such a way, so that the users are able to log in to the system directly from their existing PCs, having Windows based operating system. The software is browser based, where the users access the system based on authentic User id and password allotted to them. The log in request raised by the users is processed through Web Server, after authentication and authorization the request is passed on to one of the Application Servers based on load balancer. The Application Server then processes the request/query by fetching data from the storage system through Database Server and directs the output to the concerned user.

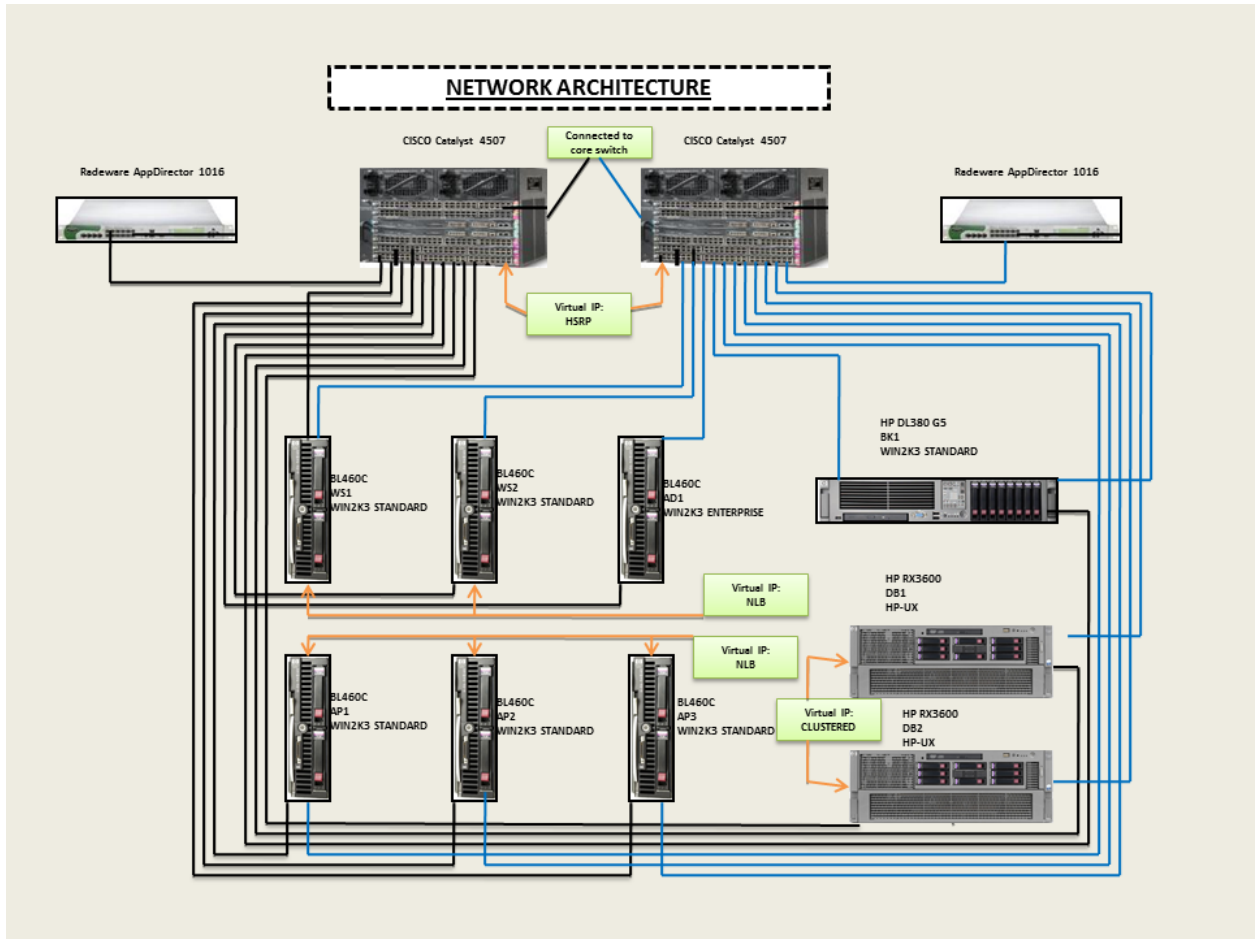
Work Flow

In the production environment, the request from the end-user hits the Radware device first through the network. Radware Device will load balance the request between the two Web Servers. Another Radware will act as a failover to the primary one. The Radware forwards the request to one of the available Web Servers.

Then from the Web Server the Login page will open screen for authenticating the user name and password. After successfully authenticating the user request will be passed on to one of the Application Servers based on load balancer. In the Application Servers the existing EPMS application is deployed on using Internet Information Services & .NET framework. The Application Server will process the request/query by fetching data from the Database Server and directs the output to the concerned user.

(Refer to the EPMS SAIL Network Architecture Diagram as given below)

Network Architecture of EPMS server system



B.PMS SERVER SYSTEM

Infrastructure

The existing PMS Server system consist of 4 Xeon servers, 1 tape drive, KVM switch , 1 console and 1 rack and operates in Client/Server environment. The Primavera based online Project Monitoring system has 1 contract manager, 1 web server, 2 database servers.

The PMS runs in Data Centre environment and is located at its 20th Floor, Scope Minar Office.

Work Flow

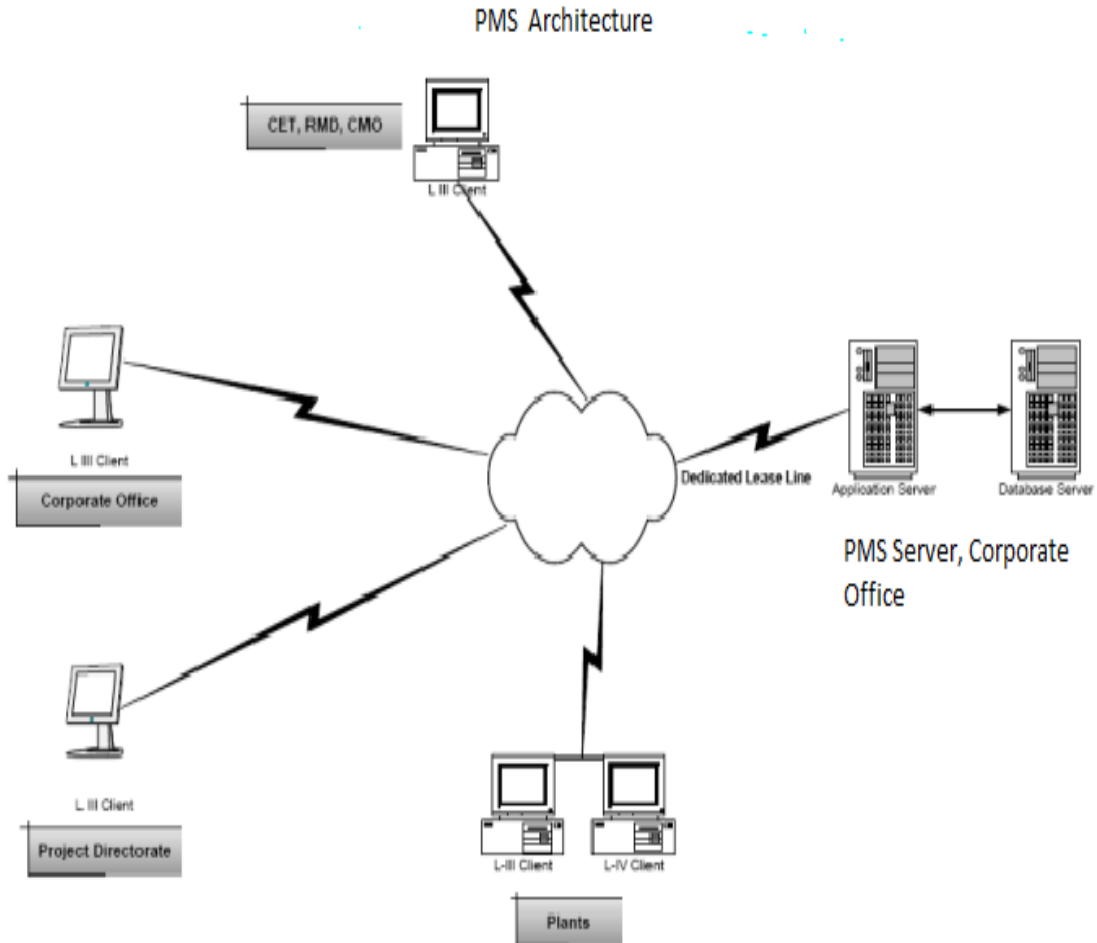
In the production environment, the Server is accessed by all SAIL plants /units through the SAIL Network. New AMR Projects & Expansion Data is entered by all SAIL plants /units time to time. This data is monitored by Project Department of Corporate office, New Delhi & the top management of SAIL.

Primavera based Online Project monitoring system(PMS) is a multiuser, multi-project system with scheduling and resource control capabilities supporting multi-tiered project hierarchies, resource scheduling with a focus on roles and skills, recording of actual data, customizable views and user-definable data.

Primavera is loaded in Central Servers located at Corporate Office, New Delhi which can be accessed by 205 Nodes situated at various plants/units. These Nodes are connected with the Central Server with a Bandwidth of 8 MBPS. Project team of plant/unit can log-in in the Central Server with their authorized user-id and password provided for updating the project status on day-to day basis.

(Refer to the PMS SAIL Network Architecture Diagram as given below)

Network Architecture of PMS server system



Annexure III C
Detailed list of equipment for EPMS server system

Sl. No.	Item Description	Part No.	Product S/No.	CPU Detail	RAM	Operating System	Equipment Qty.	Back to Back Support required
1	Server Aggregation Switch - CISCO WS-C4507 R-E	WS-C4507R-E	FOX1241GUV7, FOX1241GUVC	Catalyst 4000 supervisor IV (2 GE), 24 port module (RJ45), GBIC module (2 port), 1000 base LX/LH – 4 nos	1000W AC power supply - redundant		2 Nos.	Y Y
2	KVM Switch (1:8) - HP Standard	HP-AF601A	MY2831DSH1, MY2842E438	IP based Digital KVM Switch for connecting common console with Servers			2 Nos.	Y Y
3	Common Console Device - HP Standard	AG066A	2C49031642, 2C484710KS				2 Sets	Y Y
4	Web Server - HP BL 460c Blade server	HP-459487-B21	CN7851009Z, CN7851009X	Xeon based 64Bit Quad Core Processor	8GB Memory Expandable to 32GB 2 No 146 GB hot pluggable SAS Hard Disk	MS Window 2003 (Std) Web Server Soft ware to connect to application Server	2 Nos.	Y Y
5	Application Server - HP BL 460c Blade Server	HP-459487-B21	CN78510096, CN78510098, CN785100A1	Xeon based 64Bit Quad Core Processor	8GB Memory Expandable to 32GB 2 No 146 GB hot pluggable SAS Hard Disk	Window 2003(Std) Visual Studio (2005)	3 Nos.	Y Y Y
6	Load Balancer - Radware 1016 (AppDirector 1016ODS2)	19038004	21800405, 31302817	Load balancing between Application Servers			2 Nos.	Y Y
7	Database Server - HP rx 3600 rack mountable server	HP-AB596A	SGH4905KJN, SGH4905KJP	EPIC based No. Of Processing core 4	24GB Memory Expandable to 64 GB 3 No 146 GB hot pluggable SAS Hard Disk	HP Unix11i V3 OS level Clustering Software Oracle 10g Enterprise Edition with a total 6 CPU Lic (3 each).	2 Nos.	Y Y
8	Management & Backup Server - HP DL 380G5 rack mountable		IN18360056	2 x Dual Core Intel Xeon Processor	8GB Memory Expandable to 32 GB 4 No 146 GB hot pluggable SAS Hard	Window 2003(Std) System Management Software Backup Software	1 No.	Y

					Disk			
9	Active Directory Server - HP BL 460c Blade Server	HP-459487-B21	CN78510097	Xeon based 64Bit Quad Core Processor	8GB Memory Expandable to 32GB 2 No 146 GB hot pluggable SAS Hard Disk	Window 2003(Std) Directory Server Software	1 No.	Y
10	Enclosure for Blade Based Servers – HP c7000	HP-403320 B22	SGH902YW87				1 No.	Y
11	SAN Switch - HP 8Gb Shortwave B-series FC SFP - HP 8/8 and 8/8 SAN Switch 8-pt Upgr LTU	HP-AM867A HP-492291-001	USB903T8CH USB008T007				2 Nos.	Y Y
12	Storage External Storage Box - HP EVA4400 & Base Storage Server HP DL380G5 (rack mountable)	HP-AG556A, HPAJ694A HP-AG815B	SGH9060JT6, SGH9060JT7 SGH9060JT8	Xeon based 64Bit Quad Core Processor	HP 146 GB 15k (22 in number) – each SAN 1GB Memory Expandable to 8GB 2 No 72 GB hot pluggable SAS Hard Disk	Window Storage Server 2003(Std)	2 Nos. 1 No.	Y Y Y
13	Autoloader - 1/8 G2 HP auto loader	AA164A	MXA8511020				1 No.	Y
14	Mounting Rack (42U) for servers - HP 10542	HP-AF002A	SGH090HNL SGH0906J71				2 Nos.	Y Y
15	HP DL 320G5p rack mountable – 1U	HP-DL320G5p	SGH814H87N	Intel Xeon	4 GB Memory 2 No. 80GB HDD hot pluggable SAS Hard Disk	Window 2003(Std)	1 No.	Y
16.	OS Support, Database Support & Services for EPMS Server system							

Detailed list of equipment for PMS server system

Sl. No.	Item Description	Part No.	Product S/No.	CPU Detail	RAM	Operating System	Equipment Qty.	Backup to back Support required
17	IBM X Series 3650 - IBM (Rack)	X Series 3650	99HN160, 99HP836	Dual Core Intel Xeon 5160, 3.0 GHz	4 (2 x 2 GB) PC2-5300 CL5 ECC RAM 3 * 146 GB 3.5" hot swap SAS HDD IBM Server RAID 8K SAS Adapter 1 CD-RW / DVD Combo 2* 10/100/1000 Mbps Ethernet Card Hot swappable redundant Power supply(One Server with IBM SAS HBA controller)	Windows Server 2008 / Windows server 2003 R2	2 Nos.	Y Y
18	IBM X Series 3650 - IBM (Rack)	X Series 3650	99HA272, 99KH047	Quad Core Intel Xeon 5160, 3.0 GHz	4 (2 x 2 GB) PC2-5300 CL5 ECC RAM 2 * 146 GB 3.5" hot swap SAS HDD IBM Server RAID 8K SAS Adapter 1 CD-RW / DVD Combo 2* 10/100/1000 Mbps Ethernet Card Hot swappable redundant Power supply	Windows Server 2008 / Windows server 2003 R2	2 Nos.	Y Y
19	Tape Drive – TS2240 Half-High LTO 4 SAS Tape drive with enclosure & power supply-IBM (Make/brand)	Type-3580H4S1S4E P/N 45E0479	YN1K1B004003				1 No.	Y
20	USB Hard Disk Drive- Seagate make(Make/brand)	1000GB P/N 9ZC2AG-501	2GEWEAX2				1 No.	



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21	KVM switch – Avocent DSR 1021 with DSRIQ-USB / DSRIQ-PS2 with 4 sets of cables, Lenovo Monitor, Lenovo Key Board & Lenovo Mouse		0100183740				1 set	
22	30 U Rack APW president with accessories- APW President						1 No.	
23	OS Support, Database Support & Services for PMS Server system							

All the equipments from (Item 1-15) and item(17-22) should have back to back support

TERMS AND CONDITIONS

- 1.0 The tenderer must respond to all the points explicitly included in the Scope of Work as per **Annexure- III A**. The scope of work for CMC of Servers, Storage, switches etc. should follow the standard conventions prevalent in the industry.
- 2.0 **Period of Validity of Bids:** Bids shall remain valid for 60 days from the date of opening of tender. A bid valid for a shorter period is liable to be rejected.
- 3.0 **Price:** The price quoted shall be inclusive of all taxes/duties/levies applicable EXCEPT SERVICE TAX. Being Composite Works Contract, rate and applicability of Service Tax would be subject to changes (+/-) as per rates/rules notified by Govt. of India during the currency of the contract. *Presently, it is applicable on 70% of contract value and Service Tax rate is 12.36%.* The price is to be quoted as per the schedule given at **Form –VI**. The price bid quoted in any other format other than enclosed (Form-VI) shall be out rightly rejected. TDS and work contracts tax shall be deducted as per Income Tax Act and Delhi VAT Act.

Price (CMC charges for entire service period) discovered and finalized shall be FIRM for entire contract period and SHALL NOT be subject to any escalation for any reason whatsoever. Service Tax however will be payable extra as per prevalent rates/rules notified by Govt. of India. For the purpose of processing of bills, Daily CMC charges, if necessary, will be considered as follows:

Server System	CMC Charges (in Rs.) for entire service duration (in days)	Daily CMC Charges (in Rs.)
EPMS	Say X	X divided by 1096 days
PMS	Say Y	Y divided by 856 days

Note: Successful bidder will provide price break-up (“X” and “Y”) of CMC charges in case price-discovery is done through online Reverse Auction.

- 4.0 **Personnel deployed for the maintenance activities:**
The tenderer will ensure that the personnel assigned for the maintenance activities possess the required skills, qualification and experience in the relevant fields and are adequate in number to be able to complete the tasks as per schedule indicated in the Tender.
- 5.0 **Payment Terms:** Payments due under this contract shall be made as per the payment terms described below in this section. The Party will raise an invoice of the payments becoming due and the SAIL shall release the payment after receipt of the invoice. All payments due to the party will be subject to **Tax Deduction at Source** as per the prevailing Income Tax Act and other applicable levies as per the rules of the State / Central Governments viz. **Work contract Tax**.

The Maintenance charges will be calculated on quarterly basis and paid to the party on quarterly basis in the month following the quarter.

- 6.0 **Submission and Processing of Bills:**
The supplier shall submit the bill to the Executing Authority (EA) with the following documents:
- Invoice in the format as prescribed by SAIL
 - Penalty details as per Contractual terms (Downtime calculation, delay in replacing faulty spare parts and not performing scheduled Preventive Maintenance)
 - Proof of carrying out monthly preventive maintenance (NO BILL will be processed without carrying out monthly PM)



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Invoice for comprehensive maintenance charges will be raised on Quarterly basis after completion of a financial Quarter (Apr-Jun, Jul-Sep, Oct-Dec and Jan-Mar) and on presentation of invoice by the successful tenderer complete in all respects. *In respect of quarter(s) where full 3 (three) months period is not covered, the bill will be raised on proportionate basis for the period falling in the respective quarter. In this regard, following may be considered while processing of bills:*

Service Duration	Server System under CMC	Bill Amount Payable (Rs.)
10.05.2015 to 30.06.2015	EPMS only	Daily CMC charges (for EPMS) * 52 days
01.01.2016 to 31.03.2016	EPMS from 01.01.2016 to 31.03.2016 and PMS from 05.01.2016 to 31.03.2016	Daily CMC Charges (for EPMS) * 91 days Plus Daily CMC Charges (for PMS) * 87 days
01.04.2018 to 09.05.2018	EPMS and PMS together	Daily CMC Charges (for EPMS) * 39 days Plus Daily CMC Charges (for PMS) * 39 days

Release of payment by the Paying Authority to the Service Provider shall be subject to fulfilling all the performance criteria. Further, payment shall be made within 30 days of presentation of valid invoice at SAIL.

Executing Authority: GM (C&IT), SAIL and his authorized representative.

Paying Authority: GM(Finance), SAIL and his authorized representative.

7.0 **Down Time Calculation:** Down time will not be considered under the following conditions:

- Where SAIL has modified the hardware without prior consent of Successful Tenderer.
- Time taken for pre-scheduled preventive maintenance and health check at a time convenient to Successful Tenderer during the agreed Service Hours.
- Repair time due to equipment failure caused by operational error.
- Repair time due to equipment failure caused by confirmed environmental conditions.
- Standby equipment of similar or higher configuration/ capacity is provided, to meet the needs of the end-user.

8.0 **PENALTY CALCULATION:**

All penalty calculation will be done on quarterly basis for EPMS (Item 1-16) & PMS (Item 17-23) System separately. Recovery of penalty amount would be at the time of release of quarterly payments.

A) **Penalty for Downtime**

1. Entire EPMS (Item 1-16) & PMS (Item 17-23) System shall work in 24x7x365 mode.

2. The uptime calculation will be done on monthly basis for both the systems. Uptime for the EPMS & PMS will have to be a minimum of 99% and 98% respectively.

$$\% \text{ Uptime} = \frac{(POT - PMT - DT)}{(POT - PMT)} * 100$$

POT : Power on time (in Hours)
PMT : Preventive Maintenance time (in Hours)*
DT : Downtime (in Hours).

*Preventive MaintenanceTime (PMT) will be as agreed betweenSAIL and the service provider with respect to preventive maintenance schedule before start of the activity.

Deductions for downtime beyond the acceptable limits will be made from quarterly bill.For each percent downtime below the scheduled level of uptime (99% for EPMS; 98% for PMS), percentage deduction specified as under will be made from the Total monthly CMC amount separately for EPMS and PMS servers, which gets affected.

EPMS System	: 2% of Total MonthlyCMC amount
PMS System	: 0.5% of Total MonthlyCMC amount

3. Response time for each call logging shall be within four (4) hours, failing which a penalty of Rs 1500/- will be levied for each such incidence. *Response time means that call should be attended physically / remotely and problem should be identified & communicated to SAIL.*

B) Penalty for delay in replacing faulty spare parts

Spares type	Parts to be replaced	Penalty
minor spares	parts like floppy drive CD/DVD etc. of equipments covered in CMC, which do not affect working of the system, replacement part should be provided by service provider within 5 days from the notification time	Failure to replace the faulty part(s) will make the service provider liable to pay penalty <u>after 5 days from notification time</u> @ Rs500/- per day
major spares	parts like power supply, hard disk, motherboard, RAM etc. of equipments and/or equipment as a whole covered in CMC (which do not affect working of the system)replacement part should be provided by service provider within 3 days from the notification time	Failure to replace the faulty part(s) will make the service provider liable to pay a penalty <u>after 3 days from notification time</u> as follows: ➤ Rs. 1000/- per day for 1 st two days; and ➤ Rs. 1500/- per day after from notification time for the faulted Server/Storage etc. <i>(Penalty shall not be levied if a suitable standby machine of similar configuration is provided within 24 hours of notification time for Major faults in case of servers' breakdown)</i>

In case the fault cannot be resolved at site, pick-up and drop of materials for fault-rectification will be the supplier/ service provider's responsibility.

C) Penalty for not performing scheduled Preventive Maintenance

If scheduled monthly Preventive Maintenance is not carried out,penalty for delay will be calculated as below:

EPMS System : Rs 1000 per default
 PMS System : Rs 500 per default

The penalty shall not be levied in case of failure of SAIL to make the equipment available to the service provider for maintenance as per schedule.

NOTIFICATIONTIME OF CALL FOR THE PENALTY CALCULATION IS THE TIME WHEN THE CALL IS REPORTED TO CMC SERVICE PROVIDER THROUGH E-MAIL / VERBALLY / TELEPHONICALLY.

However total quarterly penalty for A)+B)+C) shall not exceed 10% of total quarterly



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CMC charges payment

9.0 Award of Contract; SAIL will notify the successful party in writing about acceptance of their bids. The notification of award will constitute the formation of the Contract.

10.0 Performance Guarantee:

The Party shall submit a Performance Guarantee (PG) Bond in the form of Bank Guarantee in the prescribed PROFORMA given at Annexure - V, equivalent to 10% of the total value of the Contract valid for Thirty nine (39) months from the date of Start of CMC. The Party shall submit the PG Bond within 21 days of signing of CMC. In case of unsatisfactory performance against the contract, the performance Bank Guarantee shall be encashed by SAIL. The PG Bond should be established in favour of Steel Authority of India Limited through Specified Scheduled Bank (list enclosed in this RFQ) located at New Delhi / NCR, except Cooperative and Gramin Banks.

The Bank Guarantee shall be extended for such further period or periods as may be necessary to cover an extended period of contract after the actual date of completion of annual maintenance contract.

The performance Guarantee shall be forfeited by SAIL, if the supplier/contractor is not able to rectify fault in time or is not able to discharge his liabilities as per the contract.

11.0 Services not to be included in CMC:

- Use of the equipment for purposes other than, for which they are designed.
- Accident or disaster, including water, wind and lighting.
- Damage caused by rodents or natural disaster.

12.0 Purchaser's Option for Extension of Contract: In the event of new contract not being finalized by 'SAIL' before the expiry of the current contract, service provider shall at the end of CMC period, continue to carry out the maintenance services on the same terms & conditions for one or more quarter or as communicated by 'SAIL'.

13.0 Conciliation: All questions, claims, disputes and or differences of any kind whatsoever arising out of or in connection with or concerning this contract, at any time, whether before or after determination of the contract, shall be referred by the parties hereto for Conciliation before a Conciliatory Forum / Body.

The Conciliatory Forum / Body will be composed of the following members:-

- i) Nominee of the Steel Plant / Unit – Independent of officer handling the contract(to be nominated by the head of the concerned department.)
- ii) Nominee of the Contractor / Supplier / Customer.

The parties in dispute would place their facts in writing before the Body / Forum and the process of conciliation would be completed within the period of three months from the date of reference to the Conciliatory Forum / Body.

On failure of the conciliation, the aforesaid questions, claims, disputes and or differences shall be referred by the parties hereto for the decision by a Sole Arbitrator to be appointed as herein after mentioned.

14.0 Arbitration: Matters in question, claims, dispute and or difference in respect of the contract to be submitted to arbitration as aforesaid shall be referred for decision to a Sole Arbitrator to be appointed by Director (Projects & Business Planning), SAIL. Before appointing the Sole Arbitrator, Director (Projects & Business Planning), SAIL shall nominate three names out of which the contractor / supplier / customer shall give his consent for one of them for



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In case the designation of the Director (Projects & Business Planning), SAIL is changed or his office abolished, the officer who for the time being is entrusted with the functions of the Director (Projects & Business Planning), SAIL, by whatever designation such officer is called, shall be the person designated to appoint the Sole Arbitrator. The arbitrator so appointed shall adjudicate upon the disputes between the parties hereto.

The Sole Arbitrator appointed as stated above, shall from the time of his appointment and throughout the arbitration proceedings, without any delay, disclose to the parties in writing any circumstances likely to give rise to justifiable doubts as to his independence or impartiality provided that the mere fact that such Sole Arbitrator is an employee of SAIL or its subsidiary shall not be regarded as such circumstances. The arbitrator shall decide the questions, claims, disputes or differences submitted to him by the parties in accordance with the substantive law for the time being in force in India.

The arbitrator shall hear the cases independently and impartially and shall not represent the interest of any party. Any arbitrator having personal interest in the case at the time of his appointment and at any time subsequently thereafter must withdraw from his office himself and the parties shall also have the right to ask him to do so. The venue of the arbitration shall be New Delhi.

Procedure for conduct of the arbitration proceeding shall be decided by the arbitrator, in consultation with the parties before proceeding with reference. The arbitrator may hold preparatory meeting(s) for this purpose. In the preparatory meeting(s) as aforesaid, the arbitrator/s as the case may be in consultation with the parties shall also determine the manner of taking evidence, the summoning of expert evidence, and all such matters as are necessary for the expeditious disposal of the arbitration proceedings.

The provision of the Arbitration and Conciliation Act, 1996 and the rules framed thereunder, if any and all modifications / amendments thereto shall deem to apply and / or be incorporated in this contract and when such modifications / amendments to the Act / Rules are carried out.

Work / supply under the contract shall be continued by the contractor / supplier / customer, under the contract, during the arbitration proceedings and recourse to arbitration shall not be a bar to continuance for the work or supply unless otherwise directed in writing by the Plant / Unit.

15.0 Force Majeure: In the event either or both the parties to the contract is/are prevented from discharging its/ their obligation(s) under the contract by reason of one or more of the events such as arrest(s), restraint(s), by government of people, blocked(s), revolution(s), insurrection(s), mobilization(s), strike(s), lockouts(s), civil commotion(s), riot(s), accident(s), act(s) of God or other natural calamities or on account of any other act(s) beyond the control of the parties, the time of the delivery shall be extended by the period equal to the period of delay/constraints occasioned by one or more of the aforesaid Force Majeure conditions.

On the occurrence of any of the above Force Majeure conditions, the party concerned shall notify the other party in writing of such occurrence(s) within 10 days of Force Majeure stating therein (i) the date of occurrence(s) of Force Majeure disability, (ii) the nature of such Force Majeure disability, along with a chamber of commerce of the concerned state certifying the fact of the Force Majeure condition during the period.

In the event of the party invoking the Force Majeure condition(s), the purchaser shall have the option to cancel the contract for the reason of any or all of the Force Majeure conditions notified by the party without being liable to pay any compensation whatsoever to the party.

- 16.0 Sub-contracts:** The Party shall not assign or sub-contract in whole or in part the contract in any manner except with the prior approval of the SAIL.
- 17.0 Amendments:** No variation in or modification of the terms of the contract shall be made except by written amendment signed by the parties.
- 18.0 General Condition of Contract:** General Condition of Contract governing supply contracts, of Steel Authority of India Limited (**SAIL P-I**), shall apply to this contract except to the extent modified herein. SAIL-PI can be downloaded from the Tender Section of the SAIL website www.sail.co.in.
- 19.0 Compliance with all Laws:** The selected party shall be responsible and shall ensure compliance norms with all laws applicable. This will include inter-alia, rules, regulations, bye-laws and orders of the appropriate authorities and statutory bodies and may be enforced from time to time during the contract period.
- 20.0 Termination of Contract:** The term of this contract is three years, which may be extended at SAIL's option, for one more quarter or as communicated by SAIL with the same terms & conditions without any escalation in prices.

This contract may be terminated:

- By SAIL on non-completion of jobs and / or non-performance of required services effective upon ninety (90) days prior written notice, as appropriate, at any time during the term / extended term of the contract. The decision of SAIL in this regard shall be final and binding.
- By either party, for material breach of the contract effective upon ninety (90) days written notice by the non-breaching party and the breaching party's failure to cure such Breach within the ninety (90) day notice period;
- By either party upon the issuance of notice to the other party if the other party is adjudged insolvent or bankrupt, or the institution of any proceedings by or against the other party seeking relief, reorganization or arrangement under any laws relating to insolvency, or any assignment for the benefit of creditors, or the appointment of a receiver, liquidator or trustee of any of the other party's property or assets, or the liquidation, dissolution or winding up of the other party's business.

- 21.0 Exception to Tenders:** SAIL, in its sole discretion, unconditionally and without having to assign any reason, reserves to itself the right to accept or reject the lowest bid or any other tender or all the tenders. SAIL also reserves the right to accept any tender in full or in part.

22.0 LIMITATION OF LIABILITY:

Except in cases of criminal negligence or willful misconduct,

- (a) The Service provider shall not be liable to the Purchaser, whether in contract, tort or otherwise, for any indirect or consequential loss or damage, loss of use, loss of production, or loss of profits or interest costs and
- (b) The aggregate liability of the Service provider to the Purchaser whether under the contract, in tort or otherwise including the cost of repairing or replacing defective equipment, shall not exceed 100% (one hundred percent) of the total contract price, provided that this limitation shall not apply to any obligation of the contractor to indemnify the buyer with respect to copyright, patent infringement etc.



Annexure-V

NIT No :SAIL/C&IT/RFQ/CMC/SERVERS/2015-18 dated 11/03/2015

**PROFORMA FOR BANK GUARANTEE FOR
PERFORMANCE GUARANTEE BOND
(of Specified Scheduled Bank at New
Delhi/Delhi)***

To

Steel Authority of India Limited

C&IT

19th Floor, Scope Minar, Laxmi Nagar

Delhi-110092

Bank Guarantee No.Dated

LETTER OF GUARANTEE

1. Whereas M/s (hereinafter referred to as the SELLER) and M/s STEEL AUTHORITY OF INDIA LIMITED (hereinafter referred to as the PURCHASER) have entered into a Contract vide Purchase Order no..... - dated (hereinafter called the said AGREEMENT) for Comprehensive Maintenance Contract for Server Systems (EPMS & PMS) at SAIL, Corporate office (hereinafter referred to as the Services) to the PURCHASER on the terms and conditions mentioned therein.

2. We,, New Delhi, at the request of the Seller, (name of the bank) do hereby undertake and indemnify and keep indemnified the PURCHASER to the extent of Rs. against any loss or damage that may be caused to or suffered by the PURCHASER, by reason of any breach by the SELLER of any terms and conditions of the said contract and/or in the performance of the said CONTRACT by the SELLER. We agree that the decision of the PURCHASER as to whether any breach of any of the terms and conditions of the said CONTRACT or in the performance thereof has been committed by the SELLER and the amount of loss or damage that has been caused to or suffered by the PURCHASER shall be final and binding on us and the amount of the said loss or damage shall be paid by us forthwith to the PURCHASER on demand and without protest or demur.

3. We, New Delhi, hereby further agree that the guarantee (name of the bank) herein contained shall remain in full force and effect during the period that would be taken for satisfactory performance and fulfillment in all respects of the said CONTRACT and that it shall continue to be enforceable for (a) 39 months from the date of start of Comprehensive Maintenance Contract of the Services or (b) in the event of any dispute(s) between the PURCHASER and the SELLER, until such period(s) the dispute is settled fully, whichever date is later, and

that if any claim accrues or arises against us,, by (name of the bank)

virtue of the GUARANTEE before the dates referred to at (a) and (b) herein above, the same shall be enforceable against us,, New Delhi (name of the bank)

notwithstanding the fact that the same is enforced after the dates referred to at (a) or (b) hereinabove, whichever date is later, provided that notice of any such claim has been given by the PURCHASER before the dates referred at (a) & (b) hereinabove, as the case may be. Payments under this LETTER OF GUARANTEE shall be made promptly upon our receiving the notice to that effect from the PURCHASER on demand and without protest or

4. It is fully understood that this Guarantee shall become effective from the date of the said CONTRACT and that We,, New Delhi, undertake not
(name of the bank)
to revoke this Guarantee during its currency without the prior written consent of the PURCHASER.
5. We,, New Delhi, hereby further agree that the
(name of the bank)
PURCHASER shall have the fullest liberty, without affecting in any manner our obligations herein under, to any of the terms and conditions of the said CONTRACT or to extend the time of performance of the said CONTRACT by the SELLER from time to time any of the powers exercisable by the PURCHASER against the SELLER and to forbear or to enforce any of the terms and conditions relating to the said CONTRACT
and We,,
(name of the bank)
New Delhi, shall not be released from our liability under this Guarantee by reason of any such variation or extension being granted to the SELLER or any forbearance and/or omission on the part of the PURCHASER or by any other matter or thing whatsoever which under the law relating to sureties would, but for this provision, have the effect of so releasing us from our liability under this Guarantee.
6. We, New Delhi, hereby further agree that the Guarantee
(name of the bank)
herein contained is initially valid up to and the same shall be extended further according to the provisions contained herein above.
7. We, New Delhi, hereby further agree that the Guarantee
(name of the bank)
herein contained shall not be affected by any change in the constitution of the SELLER and/or the PURCHASER.

FOR AND ON BEHALF OF

(name of the bank)
New Delhi
Signature:
Name:

DULY CONSTITUTED ATTORNEY &
AUTHORISED SIGNATORY

Designation:

(name of the bank)
Address:

Dated :-

*List of Specified Scheduled Banks at New Delhi/Delhi given at next Page.



Scheduled Commercial Banks (except Co-operative & Gramin Banks) at New Delhi / Delhi & enforceable at New Delhi / Delhi are:-

Axis Bank	ICICI Bank Ltd.	Punjab National Bank
Bank of India	I D B I Bank	State Bank of Hyderabad
Canara Bank	Indusind Bank	State Bank of India
Corporation Bank	Jammu & Kashmir Bank	Vijaya Bank
HDFC Bank	Kotak Mahindra Bank	YES Bank



Annexure VI

Proforma for submitting Bank Guarantee towards Earnest Money Deposit (EMD)

To,
Steel Authority of India Limited
New Delhi

Bank Guarantee No: _____ Date: __/__/____

Letter of Guarantee

WHEREAS Steel Authority of India Limited (hereinafter referred to as SAIL) have invited bids vide NIT No. **SAIL/C&IT/RFQ/CMC/SERVERS/2015-18 dated 11/03/2015** (hereinafter referred to as the said Invitation to Bid) for **Comprehensive Maintenance Contract (CMC) for Server Systems (EPMS & PMS) at SAIL Corporate Office New Delhi.** at the option of SAIL.

The said invitation to tender requires that any eligible tenderer wishing to make an offer in response thereto shall establish an irrevocable Earnest Money Deposit (Bid Bond) in favour of SAIL, New Delhi in the form of Bank Guarantee for an amount of **Rs 100,000=00 (Rs One Lakh only)** valid up to __/__/____ as a guarantee that the tenderer: -

(a) Shall keep his offer firm and valid for acceptance by SAIL/New Delhi upto __/__/____.

(b) And whereas, M/s __<name of tenderer>__ (hereinafter referred to as the said Tenderer) wish to make an offer in response to the said invitation to tender for **Comprehensive Maintenance Contract (CMC) for Server Systems (EPMS & PMS) at SAIL Corporate Office New Delhi.**

Now this bank hereby guarantees that in the event of the said Tenderer failing to abide by any of the conditions referred to in any of the preceding paragraphs, this bank shall pay to SAIL, New Delhi on demand, without SAIL having to substantiate its demand, and without protest or demur **Rs 100,000=00 (Rs One Lakh only)**. This bank further agrees that the decision of SAIL, New Delhi as to whether the said tenderer has committed a breach of any of the conditions referred to in the preceding paragraphs, shall be final and binding.

This bank further undertakes that this Guarantee can be operable from New Delhi and shall remain irrevocably valid and in force initially up to __/__/____ and the same shall be extended further according to the provisions contained therein above.

For and on behalf of (Name of the Bank)
Duly constituted attorney and authorised signatory

Signature: _____

Name: _____

Designation: _____

Name and address of Bank: _____

General Rules and Regulations governing conduct of Online Reverse Auction.**1.0 Brief description of the tender processing for On-line Reverse Auction is given below:**

Tenderers submit their techno commercial bid along with all the required documents as per the terms of enquiry, which are opened on the due date of opening of quotation. The price bids shall be submitted by the Tenderers on line on mjunction platform, the process for submitting online price bid is as under.

- a. Web-page to be accessed through the URL: <http://www.buyjunction.in>.
- b. There is a link in the above web-page under the section "Open Tender" through which vendors can access the required RFQ/Tender against which sealed price bids are to be accepted.
- c. The above mentioned link would be kept active by mjunction till the due date of submission of RFQ/Tender or as per directive & advertisement of SAIL in case of OTE/GTE or as per instructions in RFQ/tender documents in LTE.
- d. Existing tenderers who have earlier participated in mjunction e-platform shall have direct access to the e-auction platform. They would be able to do this by using their existing user IDs and passwords after clicking the above link.
 - e. New tenderers would have to click the link "New User" which would then throw open a pop-up screen showing details on how to (a) register online (b) receive user ID/password through email which they have registered online and (c) place their bids. With this, new tenderers would also become enabled to log in and participate on mjunction e-platform.
- f. After logging in (with respective user IDs/ passwords), tenderers shall be directed to a web-page where detailed road map (user manual) on how to place bids would be displayed.
- g. Each tenderer can login and place/register a sealed price bid on mjunction e-platform within the stipulated period stated in point 'c' above. Each tenderer can place such price bid only once and cannot revise the submitted bid subsequently. However an option for such revision is available which can be exercised at the discretion of SAIL.
- h. For OTEs, each tenderer shall be provided with a system generated acknowledgement of submission of online sealed price bid. This acknowledgement may be taken as a hard copy printout as well.
- i. After closure of the stipulated time of due date of submission of tender for online price submission, mjunction shall be able to draw out a system generated report of the techno-commercially eligible parties. This would be done after techno-commercial evaluation by SAIL and under consequent intimation to mjunction.

- 1.1 All the tenderers whose offers are found techno-commercially acceptable become eligible for participating in price bidding through On-line Reverse Auction over Internet.
- 1.2 Non-placement of bid by an eligible tenderer during the Reverse Auction event may adversely affect consideration of the tenderer for the subsequent RFQ's.
- 1.3 The Mjunction would intimate Date & Time for Start of Reverse Auction & duration of auction to the tenderers in advance. Login ID & Password specific to each tenderer is given and demonstration of bidding (On-line) process is given to enable each tenderer fully understand the process of bidding On-line.
- 1.4 Thereafter, at scheduled time the screen for On-line bidding is launched wherein the supplier would put in their bids. The RA Strategy to be employed shall be communicated to all the eligible Tenders prior to start of Reverse Auction. Mjunction would explain all the eligible tenderers about the process for participating in Reverse Auction and would also provide them training, their Log-In ID and Password to participate in the Reverse Auction.
- 1.5 All eligible tenderers having password can view the bidding on the computer screen and also enter their prices any number of times during the duration of bidding.
- 1.6 If it has been decided at tendering stage to distribute the tendered quantity to more than one supplier then after conclusion of reverse auction a screen for online matching of lowest price by



सैल SAIL

NIT no. SAIL/C&IT/RFQ/CMC/SERVERS/2015-18 dated 11/03/2015

all tenderer other than the L1 tenderer, would be launched. Tenderers other than L1 can confirm matching on L1 price on the screen.

- 1.7 The quantity would be distributed among the tenderers based on the ranking of tenderers at the conclusion of reverse auction and order would be placed on predetermined no. of parties from among the tenderers who have bid and matched L1 price.

2.0 Service Provider and the Issuance of RFQ

- 2.1 Steel Authority of India Limited has engaged the services of its Joint Venture Company M/s mjunction services limited (MJ) for conducting the Reverse Auctions. MJ is fully authorized to give clarifications / coordinate with the suppliers on behalf of Steel Authority of India Limited with respect to the conduct of Reverse Auction for the items/services mentioned in this Enquiry.

The contact details of the Mjunction are as follows:

Contact Details	
	mjunction services limited Godrej Waterside, Tower 1, 3 rd Floor Block - DP, Plot - 5, Sector V ,Salt Lake City, Kolkata – 700091, West Bengal, INDIA Mr. Jaideep Boruah, Tel: 033-6610 6446; Fax: 033-6603 1734 E-mail: jaideep.boruah@mjunction.in

- 2.2 Suppliers who are acceptable to Steel Authority of India Limited and who accept all the Terms and Conditions shall be intimated by M/s mjunction services limited to participate in the Reverse Auction.
- 2.3 SAIL, CO will intimate the list of Techno-Commercially acceptable Tenderers to mjunction. All further communication w.r.t Reverse Auction will be done by mjunction to the authorized representative of Tenderers as furnished by Tenderes in Form –IV A of this document(to be submitted along with Techno-Commercial Bid). mjunction will explain the Reverse Auction process to all the prospective tenderers and clarify issues, if any. It will be the responsibility of the tenderers to get them acquainted to their satisfaction with the On-line bidding process by thoroughly interacting with the mjunction. Only SAIL, CO will be empowered to approve any deviations from the RFQ document asked for by the Supplier.
- 2.4 Vendor Enablement- Mjunction shall have the responsibility of familiarizing the tenderers with the Reverse Auction Process. (Including training to the vendors).

3.0 Participation in On-line Reverse Auction for price bidding:

- 3.1 Tenderers will be required to participate in On-line Reverse Auction over Internet for price bidding.
- 3.2 The **General rules & regulations** are given in point no. 4 and **definition of Key Terms of Reverse Auctions** is given in point no. 5.
- 3.3 The key features for participation in a Reverse Auction are given below:
 - a) The Reverse Auction will be conducted on mjunction's platform. Mjunction shall intimate schedule of the Reverse Auction to all the techno-commercially acceptable tenderers.
 - b) The start bid price, minimum decrement and bid time shall be intimated to all techno-commercially acceptable tenderers.
 - c) There would be an auto extension of bid time in case bids are placed during last minutes of the indicated bid closure time. The auto extension rule will extend the bid time by a period till bids continue to get placed or the buyer decides to terminate the Reverse Auction. The auto extension time may be 3, 5, 10, 15 etc. minutes as decided and communicated by mjunction.
 - d) All tenderers should nominate a person who would be the authorized 'TENDERER' (i.e., the person who is authorized to bid in Reverse Auction on the firm's behalf - **Form IV A to be filled for authorization & sent with the Techno Commercial Bid**). The "USER-ID" and



“PASSWORD” will be given to this person only. The Mjunction will intimate a secure and confidential Login ID and Password specific to each tenderer, for participating in the Reverse Auction. The user ID and Password shall be intimated to the tenderer before the reverse auction.

- e) **During the Reverse Auction, tenderers have to quote lumpsum (Single) price exclusive of Taxes for the entire job as per the scope of work.**
- f) During the Reverse Auction, suppliers shall be allowed to revise their price and bring it downward only. **Tenderers are not allowed to quote above the Start Bid Price.**
- 3.4 All Tenderers have to confirm through scanned document/fax (email id/fax number shall be intimated to all tenderers along with the Auction Notice) to mjunction, their last quoted prices **(Form IV B - to be filled after the reverse auction & sent & not with the techno commercial bid).**
- 3.5 All Tenderers are advised to quote from a reliable Internet facility, as neither SAIL nor MJ would be responsible for any failure in the Internet connectivity during the bidding.
- 3.6 It is to categorically state on behalf of M/s SAIL, and M/s mjunction that the Tenderers need not pay any fee towards training for actual bidding or any other service with regard to this tender etc., in the Reverse Auction and the Tenderers need not subscribe to any of the services in lieu of participation in the Reverse Auction.
- 3.7 Written Acceptance in-toto to all the Terms & Conditions mentioned in this document is a pre-requisite for securing participation in the On-line Reverse Auction conducted by Metal junction on behalf of Steel Authority of India Limited for the products required as per this RFQ.
- 4.0 Price break-ups will be required to be furnished by the L1 tenderer for the various componets of the job as per the scope of work. The tenderers shall submit their detailed price break-up for all taxes and duties, within two working days of the closure of the auction to mjunction with a copy to SAIL,CO, either through scanned document or Fax.**
- 5.0 The General Rules and Regulations provided herein that govern the conduct of On-line Reverse Auctions operated by mjunction services limited.**

INTRODUCTION

The General Rules and Regulations provided herein that govern the conduct of On-line Reverse Auctions operated by mjunction services limited. These rules cover the roles and responsibilities of the parties in the On-line Reverse Auctions on the Mjunction platform. **Acceptance in-toto to these General Rules and Regulations is a pre-requisite for securing participation in the On-line Reverse Auctions on the Mjunction platform.**

Role of mjunction

Mjunction is the service provider providing the forum for conducting the reverse auction, the role of Mjunction as the agency providing the auction engine would include:

- Input of the details of the auction items and defining of the bidding rules as desired by the client.
- Providing access to the approved tenderers to participate in the auction
- Enhancing tenderer awareness of and comfort with the auction mechanism and bidding rules.
- Summarizing of the auction proceedings and communication of the outcome to the client.

The responsibility for fulfillment of the contract rests between the tenderers and the client and **mjunction** shall have no liability on this account.

Role of the Tenderer

The role of the tenderer is outlined below:

- The tenderer would participate in the Reverse Auction with the aim of bidding to secure the auctioned item in the auction (being selected for supplying the client's requirement in a Reverse Auction).
- The tenderer would be provided access to the Auction through a User Id protected by a password. The tenderer needs to ensure that the User Id and password is not revealed to unauthorized persons.
- Access to the auction mechanism shall be provided to all the approved tenderer subsequent to obtaining their written consent to the General Rules & Regulations.



- In the event of winning an allotment in the auction mechanism, the tenderer shall commit to fulfill outlined obligations under the contract.

Bidding Rules:

The Bidding Rules refer to the information and terms defined specifically for a particular Reverse Auction. The purpose of the Bidding rules is to provide approved tenderer with the information and terms specific to the auction in which they are bidding. This would include:

1. Start Time and duration of the Reverse Auction.
2. Any extension of the duration of the auction in the event of bids being received towards the end of the pre-specified duration.
3. Reserve Price (if specified).
4. Minimum & Maximum Bidding Quantity (if specified)
5. Price Decrements and any reduction in the price decrements in the auction in the event of inactivity.
6. Other attributes (informational/non-negotiable in nature)
7. Participation in the auction process presumes complete awareness and understanding of the bidding rules.



Conduct of the Reverse Auction

The Reverse Auction shall be conducted on pre-specified date.

Mjunction retains the right to cancel or reschedule the Reverse Auction on any of the followings reasons:

Some of the confirmed tenderers are unable to access the module due to infrastructural problems such as sustained power failure or telecommunication breakdown.

Bids are received but above the Start Bid Price

The duration of the Reverse auction may also vary from the pre-specified period of time on account of termination of the auction by mjunction:

- On the advice of the client, or,
- On its own accord in case of situations where it is felt that continuance of the auction proceedings is prejudicial to the smooth conduct and / or integrity of the auction process.

Liability of mjunction:

mjunction shall not be liable to the client / tenderers in the auction or any other person(s) for:

- any breach of contract by and party in the fulfillment of the underlying contract.
- Any delays in initiating the online auction or postponement / cancellation of the online auction proceedings due to any problem with the hardware / software / infra structural facilities or any other short comings.

Confidentiality Clause

mjunction undertakes to handle any sensitive information provided by the client or confirmed tenderers for the reverse auctions conducted on the mjunction platform with utmost trust and confidentiality.

Jurisdiction

Any disputes relating to the online reverse auction module shall be subject to the sole jurisdiction of Kolkata courts only to the exclusion of any other court.

Right of the client

SAIL reserves the right to fully / partly accept the bids or completely reject the same.

5. Definition of Key Terms – Reverse Auction

Reverse Auction

Reverse Auction is used to procure items/services, where the requirement for one/more Markets of an item is stated and the participants are required to bid down the price to be selected to supply the requirement.

On-line Reverse Auctions

On-line Reverse Auctions refer to those Reverse Auctions conducted through the Internet with simultaneous bidding by the tenderers (from one or more locations). In other words, the venue for the auction is on an Internet website/ platform. The Mjunction website (<http://auction.mjunction.com>) or any other URL assigned by Mjunction would constitute the venue for the purpose of the on-line auction.

Award at the Reverse Auction

The tenderer quoting the lowest price is normally allotted the item/service.

Client

Client is SAIL who has contracted mjunction to conduct such Reverse Auction. In case of Reverse Auction, the purpose would be to meet their requirement for item/s from among the sellers desiring to sell the items to the Client.

Tenderer

Tenderer is the individual/business entity participating in the Reverse Auction, intending to supply



the item/s to the Client. To become a Tenderer in the auction, a business entity has to secure client approval for participation and also provide written assent to the General Rules and Regulations.

Auction Engine

Auction Engine refers to the software that encapsulates the entire auction process, processing logic and information flows. mjunction is the sole owner of the auction engine and retains exclusive right over the utilization of the same.

Preview Time

Preview Time refers to the period of time that is provided prior to the commencement of bidding. This is to facilitate approved participants to view the auction details such as item specifications, bidding details and bidding rules. The purpose is also to familiarize participants with the functionalities and screens of the auction mechanism. It is not mandatory for mjunction to provide Preview Time.

Start Time

Start time refers to the time of commencement of the conduct of the On-line auction. It signals the commencement of the Price Discovery process through competitive bidding.

Duration of the Reverse Auction

It refers to the length of time the price discovery process is allowed to continue by accepting bids from competing tenderers. The duration of the auction would normally be for a pre-specified period of time. However, the bidding rules may state the conditions when the pre-specified duration may be extended/ curtailed. The conditions include:

- Automatic extension in the event of bids being entered towards the end of the scheduled duration to facilitate the other tenderers to view and react to the bid.

Auto Extension of the Auction Timings

In the event of bids in the last few minutes of the scheduled bid time, the Bid Timings are automatically extended for a specified period from each such bid. Such Auto Extension shall continue until no bids are placed for the specified period (Engine remains inactive for the specified period). The Inactivity Time for Auto Extension purpose is normally 3 minutes. Mjunction however retains the right to change the same. The Inactivity Time applicable for the particular On-line Bid shall be communicated to the tenderer if it will be set to a value less than 3 minutes.

End of the Reverse Auction

End of the Auction refers to the termination of the bidding event signaling an end to the price discovery process.

Auction Report: mjunction would provide an Auction Report to the Client containing a summary of the bidding event and outcome. The Auction Report would constitute the official communication from mjunction to the client about the outcome of the Reverse Auction.

ID and Password - Password and ID shall be given to all the eligible by the mjunction for enabling the tenderer to participate in the Reverse Auction.

Start –Bid Price – Start Bid Price is the Maximum Price, which will be accepted by the Reverse Auction engine. Supplier have to quote a price lesser than the Start Bid Price for participating in the Reverse Auction. The computer shall not accept Price higher than Start Bid Price for a lot. Bidding will start at start Bid Price to be intimated in advance to the vendors eligible for bidding. This will be put up on the site and will also be communicated in advance through Fax/ email.

Minimum Decrement- Minimum decrement is the minimum amount a supplier has to reduce in order to beat a higher bid. For example if a tenderer bids Rs 10,00,000/- for a Market, others, in order to beat this bid, have to quote a lower price with a minimum decrement say of Rs 2,500/- i.e. in order to be eligible they have to quote Rs. 9,97,500/- (or lower) for the same Market. This minimum decrement shall be pre-decided by Steel Authority of India Limited and will be in- built in the auction engine.

6.0 Mjunction retains the right to extend or cancel or reschedule the reverse auction on any of the following reasons:

SI No	Circumstance	Action
01	Auto Extension Of Bidding Time	ONLY in the event of any bid being placed in the last 3 minutes of the scheduled bidding time, the bidding time shall automatically extend by 3 minutes from each such bid. This Auto Extension mechanism remains activated until a continuous inactivity period (i.e. no bids being placed by any tenderer) of 3 minutes is reached at which point the market shall close
02	Cancellation of event / bid	1. The number of confirmed tenderers is deemed insufficient to conduct the reverse auction. 2. On Advice of the Buyer 3. MJ on its own accord - in case of situations where it is felt that continuance of the auction proceedings is prejudicial to the smooth conduct and/or the integrity of the auction process. 4. Cancellation/ premature termination of the reverse auction with/ without a subsequent rerun of the auction on a mutually decided date between Client and MJ. 5. Cancellation of a wrong bid 6. Locking a tenderer's account (suspension of operations in the account)
03	Poor Participation	1. Manual extension carried out if less than 10 bids received 2. Reserve / expected price not met. 3. It is determined that one or more tenderers have submitted bids which are clearly below Cost 4. On the advice of the Buyer
04	Unable to access the module due to infrastructural problems - Internet Problems being reported by tenderers	1. Manual extension carried out till connectivity restored or MJ will bid on behalf of tenderer after obtaining suitable authentication. 2. The number of extensions and the time involved in each extension is on the judgment of the auction controller concerned.
05	MJ server not able to connect to the Internet cloud	To the extent possible, all auctions will be extended until the problem is resolved/ internet connectivity of MJ machine improves. Ability to extend depends upon time available, as also ability of MJ staff to connect to the MJ machine.
06	Power failure/ Planned power shutdown in his area reported by	MJ will bid on behalf of tenderer after obtaining suitable authentication. (The party will inform his minimum price and will also inform his user id and password) Manual extension may be involved if the call is received just



	an interested supplier	before closure, and MJ staff does not have sufficient time required to make a bid.
At the request of the Client, mjunction may permit bidding through a combination of online and offline means (offline means including phone/fax/email). However in such event, mjunction would not be responsible for any errors in transmission or entry of the information received in the offline medium. It must be expressly understood that such facilities if and when extended are only for the convenience of tenderers and, while reasonable care and caution shall be taken by mjunction, the ultimate responsibility for the same shall rest with the tenderer/s.		

7. Training Module (STEPS TO PERFORM FOR BIDDING IN AN ON-LINE REVERSE AUCTION)

WELCOME TO THE ONLINE SOURCING PLATFORM OF buyjunction buyjunction.in

Log in to our website to participate in Online Auctions

CONTACT DETAILS

FAX : 033-6603 1734 / 033-6613 3222
CONTACT DETAILS DURING AUCTION:

033-6610 6160 / 033-6610 6446

CONTACT DETAILS BEFORE & AFTER AUCTION:

Mr.Jaideep Boruah: 033-6610 6446

ATTENTION PLEASE:

1. During Auctions you may contact us only for guidance only at the Auction Room nos. All conversations will be on record. Calls made to any other contact nos. or mobiles will not be entertained during the auction period.
2. Be active during bidding. Keep your contact nos. free from any other calls so that our representatives can reach you easily whenever required.
3. Ensure stable connectivity. Use Proxy bidding wherever provided. Manual Extensions will not be provided at the request of a tenderer. M/s mjunction services limited or the Client will not be responsible for any disconnectivity or infrastructural failure at your end.
4. Keep your email inbox open to receive any files, if sent, during the event.
5. Bid ahead of close time. Do not wait till the last few seconds to bid. Your bid may not finally get registered in the system due to slow connection speed at your end or due to the time lag between your server and our server.
6. Only authorized people should bid. Bids once placed will have to be honoured. Wrong bids, if placed for whatsoever reason will not be DELETED from the system. Please be careful while bidding.
7. You need to change your password to keep it secure. Mjunction or client will not be responsible for any misuse of your Login ID and password.

STEPS TO PERFORM FOR BIDDING IN ONLINE SOURCING PLATFORM OF buyjunction

1. Connect to the Internet.
2. Launch Internet Explorer browser or Netscape Navigator.



3. In the address bar, type the path **buyjunction.in** & click on “**Log in for Online Auctions**” located on top right side of the screen.

For practicing use the following Login Id & passwords:

Please do not change the demo passwords.

	Demo ID	Password
01	100000	100000
02	100001	100001
03	100002	100002
04	100003	100003

For the actual event use login ID provided by us.

AFTER LOGIN INTO THE SITE WITH YOUR USER ID, CHANGE PASSWORD TO CONTINUE.

➤ **UPDATE PROFILE**

To update profiles of **User & Organization** , click on right side of screen. Please keep the same updated always.

➤ **DOWNLOADING DOCUMENTS**

On the left pane of the screen click on “**DOWNLOAD**”. Click on respective hyperlink to get the relevant document.

➤ **IMPORTANT MESSAGES**, if any, during the event will be flashed on top of the screen.

A. TO PARTICIPATE IN ONLINE REVERSE AUCTION

4. Click on **BID (S)** to proceed for auctions.
5. Click on **ADD** to participate in bidding.
The screen has two parts horizontally divided – **Bid Summary Screen&Bidding Screen**.
6. **Bid Summary Screen:** Bid Summary Screen(Top Screen) will provide the latest update of all the running markets. It refreshes automatically to provide you the latest market status, current market price. ***This is viewable only for those items where you have placed a valid bid which is equal to or less than the Start Bid Price.***
7. **Bidding Screen:** Choose the item / items you want to give your price by entering the price amount in the respective box under “**NEW BID**” and then clicking the respective check boxes in the extreme left column. Next click on the “**SUBMIT**” button placed at the left bottom of the screen.

The bid to placed can be of two types – Normal Bid & Proxy Bid.

Normal Bid is a direct bid being placed manually.

Proxy Bid :This is the most preferred way to bid.The lowest value that you can offer to supply is fed in the system for the system to bid on your behalf. This value is not known by any other tenderer and rests at the backend of the system. This is a feature provided to you to keep you:

- the leading tenderer till the lowest bid value fed in the system till some other tenderer places a bid lower than yours.
- safeguards you from any disconnectivity /infrastructural failure (power, computer, link, slow speed etc) or other problems.
- Where more than one Market/Lot is running simultaneously.
- Pre-occupied and not in a position to put normal bids

How to activate: Simple. Place your lowest bid value under “**NEW BID**” and click on the check box under “**PROXY**” (A tick mark will appear). Then select & submit the bid. Once the proxy is activated the bids are placed automatically as per the minimum decrements upto the limit to which you have activated the proxy. The lowest value of your proxy bid amount is not visible by any other tenderer.



If two tenderers activate two different proxy amounts, the market will come to a bid value which is lower of the two.

Example : Suppose, the current bid in the market is Rs.1500 and the min. decrement is Rs.10 and you have activated proxy till Rs.1450. Now say another tenderer places a bid of Rs.1480, the system automatically bids Rs.1470 on your behalf at the same time and keeps you as a leading tenderer.

“DO REMEMBER THAT TILL A HAMMER  APPEARS ON YOUR SCREEN YOU ARE NOT A LEADING TENDERER.”

8. A message will appear under “Result”. If the bid is a valid or accepted bid, you will now be able to see the market status on the top screen.
9. If your bid is the **Leading bid**, then the picture of a  hammer will appear on the top screen. If not repeat the step 7 to improve your bid to be in the winning position. **Bids need to be placed in multiples of Bid decrement only.**
10. It is possible that more than one supplier's same lowest price is accepted in the system. This becomes a TIE BID. The position/Rank will be decided on the basis of time. This happens when a proxy bid of one supplier reaches the threshold limit and a normal bid of the same value from another supplier is placed. Only one tenderer will see the hammer in the screen. Hence the other tenderer needs to improve the price to see the hammer in the screen and be in a winning position.
11. The On-line Event of the particular item stops at the close time mentioned as per the schedule if there is no bid in the last 3 minutes of the close time. If there is a bid in the last 3 minutes, the close time will automatically be extended by another 3 minutes and so on till no further bids are received in the system. This is due to a “Auto Extension mechanism” working in the system. However if mjunction or the client feels that the price obtained is not appropriate or for any other reason under mjunctions / clients discretion, the close time may be manually extended. However for SAIL events, time may be extended when there is no bids, single bid or technical failure of our server situation.
12. New Lots/Markets launched will appear on the top screen. For submitting your bid in new lots, click again on BID (S) and then on ADD button to view the new markets and repeat the steps from 7.
13. To “**Logout**” click the “Sign Out” button at top of the screen.

C. TO PARTICIPATE IN ONLINE PRICE MATCH

Steps 1 to 5 is same as mentioned above. Directly go to step 7. The displayed Bid Price cannot be changed. Only select the check box and SUBMIT the bid to acknowledge matching the displayed price. No market status will be available.

VIEWING CLOSED AUCTION DETAILS

Click on **BIDS** on the left pane of screen & click on **VIEW, CLOSED AUCTIONS** & then **CODE** to check closed auction details. For each of the Codes the details will appear. The details will be available for maximum of 24 hrs.

“In case you have any complaint/suggestion regarding mjunction’s e-reverse auction, kindly log into auction.buyjunction.in and use the feedback link given on the top left hand side of the page .Complaints/Suggestions regarding mjunction’s e-reverse auction received through any other mode will not be treated as formal”

**Basic Information About The Tenderer**

1. **Company Name:**
2. **Ownership details:**
3. **Status of the company (Limited, PSU, SSI etc.):**
4. **PAN Number:**
5. **Bank Account Details:**
 - a) **Name of the Account Holder:**
 - b) **Name of the Bank**
 - c) **Branch Address**
 - d) **9-Digit MICR Code**
 - e) **Account Type - (S.B., Current A/c, Cash Credit A/c etc.)**
 - f) **IFSC -**
6. **Contact person Name, Designation, address, phone no. , fax no. &E-Mail ID:**
7. **Applicable taxes (with rates) :**

8. Financial details of the company:

Financial Year	Turnover (Rs in Crs)	Profit/ Loss (Rs in Crs)

9. Current / Major Client List:

S. No.	Name of the client	Services provided. (Attach copies of CMC/AMC)

We hereby certify that all information provided above is correct and true to the best of my knowledge.

**Signature
Name
SEAL:**



Declaration for Acceptance of Scope of Work

We, M/s
.....having
theregistered office at
.....agree to
all theScope of Work of the NIT No. SAIL/C&IT/RFQ/CMC/SERVERS/2015-18 dated
11/03/2015, issued by SAIL for **Comprehensive Maintenance Contract (CMC) for Server
Systems (EPMS & PMS) at SAIL Corporate Office New Delhi.**

Date

**Signature
Name
Company Name & Seal of
authorized person**



NIT no. SAIL/C&IT/RFQ/CMC/SERVERS/2015-18 dated 11/03/2015

Form -III

**Declaration for Acceptance of Techno-Commercial Terms
&Conditions**

We, M/s
.....having
theregistered office at
.....agree to
all theTechno-Commercial Terms & Conditions of the Request For NIT No.
SAIL/C&IT/RFQ/CMC/SERVERS/2015-18 dated 11/03/2015, issued by SAIL for
**Comprehensive Maintenance Contract (CMC) for Server Systems (EPMS & PMS) at
SAIL Corporate Office New Delhi.**

Our offer will remain valid for 60 days from the date of opening of the Tenders.

Date

Signature
Name
Company Name & Seal of
authorized person



FORM IV

STATEMENT OF DEVIATION FROM SPECIFICATIONS AND BID TERMS

The following are the particulars of deviations from the requirements of the bidding terms and conditions:

CLAUSE/PARA	DEVIATION	REMARKS (including justification)
-------------	-----------	--------------------------------------

We, hereby, declare that there are no deviations from the tender terms and conditions other than those mentioned above.

Dated -

Signature and seal of
the Tenderer

NOTE: Where there is no deviation, the statement should be returned duly signed with an endorsement indicating "No Deviations"



FORM –V A

(To be submitted on Service provider's Letter Head)

Format for Acceptance of General Terms & Conditions, Commercial Terms and all other Terms of the Reverse Auction

We _____
(Service provider Name)
having registered office at _____
(Address)
agree to all the Commercial, General & other Terms & Conditions listed in the
NIT No. SAIL/C&IT/RFQ/CMC/SERVERS/2015-18 dated 11/03/2015for

Comprehensive Maintenance Contract (CMC) for Server Systems (EPMS & PMS) at SAIL Corporate Office New Delhi.through Reverse Auction.

We confirm that we are in a position to provide Comprehensive Maintenance Service (CMC) for EPMS and PMS server systems **as per details** given in RFQ. We have also understood the Reverse Auction Process and the Reverse Auction rules and special instructions given in the RFQ. We agree to participate in the Reverse Auction and abide by the rules.

We nominate an executive, whose details are given below, to put the bids on our behalf.

The details of the person authorized to bid on our behalf is as follows.

Name & Designation :

E-mail ID :

Contact phone nos. :

Address :

(Signature & Seal)

Place :

Date :



FORM-V B

Format for submitting last quoted prices

(To be submitted on Company Letter Head of the Tenderer)

(To be sent within 30 mins of conclusion of the Reverse Auction)

To,
mjunction services limited
1st Floor, Tata Centre
43, Jawaharlal Nehru Road
Kolkata – 700 071

Fax: 033 – 2288 3279

Ref: Reverse Auction for providing Comprehensive Maintenance Contract (CMC) for Server Systems (EPMS & PMS) at SAIL Corporate Office New Delhi to SAIL held on

.....

Reference above, we hereby confirm our last quoted prices in the Reverse Auction held on for providing **Comprehensive Maintenance Contract (CMC) for Server Systems (EPMS & PMS) at SAIL Corporate Office New Delhi..**

Item	Last Quoted Price
CMC Charges (All-inclusive cost basis) for EPMS and PMS server systems	

We also confirm that we will submit price break-up, *within two hours* from the date of Reverse Auction.

Signature :

Name :

Designation :

Date :



Price Bid

(Price in Rs.)

Sl. No.	Equipment Description	CMC Charges in Rs. (including all taxes/ duties except Service tax)*	Service tax		Total Amount
			Rate (12.36%* of the 70% of CMC charges)	Amount (in Rs.)	(in Rs.)
(1)	(2)	(3)	(4)	(5)=(3)X(4)	(6)=(3)+(5)
A	EPMS System (Equipment details given in Annexure III C(items 1-16))	To be quoted for entire service period for EPMS (i.e. 1096 days) Say "X"	8.652% of CMC charges		
B	PMS System (Equipment details given in Annexure III C (items 17-23))	To be quoted for entire service period for PMS (i.e. 856 days) Say "Y"	8.652% of CMC charges		
	Total Price	(In words)			(In figures)

*Present rate of Service Tax.

Note :-

1. Service Period for EPMS and PMS is considered as under:

Year	Service Duration (in days)	
	EPMS	PMS
2015	236	0
2016	366	362
2017	365	365
2018	129	129
Total:	1096	856

2. CMC Charges are to be quoted for entire contract duration i.e.
For EPMS server: 1096 days **(from 10.05.2015 to 09.05.2018)**
For PMS server: 856 days **(from 05.01.2016 to 09.05.2018)**

(CMC of the EPMS and PMS would commence on different dates (EPMS on 10.05.2015 whereas PMS on 05.01.2016) but would co-terminate on same date i.e. 9th May'2018)

3. Invoice will be submitted on Quarterly basis as per para-6 of Annexure IV of the RFQ.
4. Rate for service tax is indicated as per existing Service Tax rates which is Composite Works Contract. This is subject to changes (+-) as per prevalent rates (as notified by Govt. of India) during the currency of the contract. *Presently, it is applicable on 70% of contract value and Service Tax rate is 12.36%.*
5. Work Contracts Tax and TDS shall be deducted as per Income Tax Act and Delhi VAT Act.

(Authorized Signatory with Seal)

Un-priced Price Bid

Sl. No.	Equipment Description	CMC Charges in Rs. (including all taxes/ duties except Service tax)*	Service tax
			Rate (_____ * of the 70% of CMC charges)
(1)	(2)	(3)	(4)
A	EPMS System (Equipment details given in Annexure III C (items 1-16))	Quoted in the Price-Bid Say "X"	_____ % of CMC charges
B	PMS System (Equipment details given in Annexure III C (items 17-23))	Quoted in the Price-Bid Say "Y"	_____ % of CMC charges

*Present rate of Service Tax.

Note :-

1. Service Period for EPMS and PMS is considered as under:

Year	Service Duration (in days)	
	EPMS	PMS
2015	236	0
2016	366	362
2017	365	365
2018	129	129
Total:	1096	856

2. CMC Charges are to be quoted for entire contract duration i.e.
For EPMS server: 1096 days **(from 10.05.2015 to 09.05.2018)**
For PMS server: 856 days **(from 05.01.2016 to 09.05.2018)**

(CMC of the EPMS and PMS would commence on different dates (EPMS on 10.05.2015 whereas PMS on 05.01.2016) but would co-terminate on same date i.e. 9th May'2018)

3. Invoice will be submitted on Quarterly basis as per para-6 of Annexure IV of the RFQ.
4. Rate for service tax is indicated as per existing Service Tax rates which is Composite Works Contract. This is subject to changes (+-) as per prevalent rates (as notified by Govt. of India) during the currency of the contract. *Presently, it is applicable on 70% of contract value and Service Tax rate is 12.36%.*
5. Work Contracts Tax and TDS shall be deducted as per Income Tax Act and Delhi VAT Act.

(Authorized Signatory with Seal)